



2025/0360(COD)

29.6.2026

AMENDMENTS

69 - 296

Draft opinion

Brando Benifei

(PE789.142v01-00)

Amending Regulations (EU) 2016/679, (EU) 2018/1724, (EU) 2018/1725, (EU) 2023/2854 and Directives 2002/58/EC, (EU) 2022/2555 and (EU) 2022/2557 as regards the simplification of the digital legislative framework, and repealing Regulations (EU) 2018/1807, (EU) 2019/1150, (EU) 2022/868, and Directive (EU) 2019/1024 (Digital Omnibus)

Proposal for a regulation

(COM(2025)0837 – 2025/0360(COD))

AM_Com_LegOpinion

Amendment 69
David Cormand

Proposal for a regulation
Recital 1

Text proposed by the Commission

(1) In its Communication on a simpler and faster Europe⁴, the Commission announced its commitment to an ambitious programme to promote forward-looking, innovative policies that strengthen the Union's competitiveness and radically lighten the regulatory load for people, businesses and administrations, while maintaining the highest standard in promoting the Union's values. Consequently, the Commission prioritised the proposal of immediate adjustments to legislation, including digital legislation, to address the competitiveness challenge of the Union.

⁴ Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, A simpler and faster Europe: Communication on implementation and simplification, COM(2025)47 final, 11 February 2025

Amendment

(1) In its Communication on a simpler and faster Europe⁴, the Commission announced its commitment to an ambitious programme to promote forward-looking, innovative policies that strengthen the Union's competitiveness and radically lighten the regulatory load for people, businesses and administrations, while maintaining the highest standard in promoting the Union's values, ***and preserving legal certainty, institutional balance, the hierarchy of norms and the level of protection guaranteed by the Charter of Fundamental Rights of the European Union***. Consequently, the Commission prioritised the proposal of immediate adjustments to legislation, including digital legislation, to address the competitiveness challenge of the Union.

⁴ Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, A simpler and faster Europe: Communication on implementation and simplification, COM(2025)47 final, 11 February 2025

Or. en

Amendment 70
Daniel Buda

Proposal for a regulation
Recital 1

Text proposed by the Commission

(1) In its Communication on a simpler and faster Europe⁴, the Commission announced its commitment to an ambitious programme to promote forward-looking, innovative policies that strengthen the Union's competitiveness and radically lighten the regulatory load for people, businesses and administrations, while maintaining the highest standard in promoting the Union's values. Consequently, the Commission prioritised the proposal of immediate adjustments to legislation, including digital legislation, to address the competitiveness challenge of the Union.

⁴ Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, A simpler and faster Europe: Communication on implementation and simplification, COM(2025)47 final, 11 February 2025

Amendment

(1) In its Communication on a simpler and faster Europe⁴, the Commission announced its commitment to an ambitious programme to promote forward-looking, innovative policies that strengthen the Union's competitiveness and radically lighten the regulatory load for people, businesses and administrations, ***simplifying and improving EU policies and laws through rules that are clearer, easier to understand and faster to implement***, while maintaining the highest standard in promoting the Union's values. Consequently, the Commission prioritised the proposal of immediate adjustments to legislation, including digital legislation, to address the competitiveness challenge of the Union.

⁴ Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, A simpler and faster Europe: Communication on implementation and simplification, COM(2025)47 final, 11 February 2025

Or. ro

Amendment 71
David Cormand

Proposal for a regulation
Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in

Amendment

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in

the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. ***The Digital Fitness Check should constitute the appropriate forum for conducting proper impact assessment on the need to amend further the legislative Acquis.*** Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

Amendments to Regulation (EU) 2016/679 and (EU) 2023/2854 should be supported by a dedicated impact assessment, evaluating the cumulative effects on Articles 7, 8 and 47 of the Charter of Fundamental Rights of the European Union and the requirements of Article 52(1) thereof. Substantial amendments to fundamental-rights safeguards, such as those on the rights to privacy and for protection of personal data, should be duly justified beyond the goals of simplification, competitiveness, innovation or reduction of administrative burden.

Or. en

Amendment 72
Victor Negrescu

Proposal for a regulation

Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

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Or. en

Amendment 73
Daniel Buda

Proposal for a regulation
Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments ***notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary***. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

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(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments ***based on the 'digital by default' and 'simplicity by design' principles, which would effectively reduce administrative costs for businesses, notably for SMEs and small mid-caps***. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

Or. ro

Amendment 74
Arash Saeidi

Proposal for a regulation
Recital 3 a (new)

Text proposed by the Commission

Amendment

(3a) This Regulation should simplify the application of the Union digital acquis while preserving legal certainty,

institutional balance, the hierarchy of norms, and the level of protection guaranteed by Articles 7, 8, 47 and 52(1) of the Charter of Fundamental Rights of the European Union. Amendments affecting the material scope of fundamental rights safeguards, the exercise of data subject rights, preventive safeguards, enforcement mechanisms or the allocation of powers between the legislature, the Commission, independent supervisory authorities and courts should be clearly justified, supported by evidence, and assessed in light of their cumulative effects. Simplification should make rights and obligations more accessible, foreseeable and enforceable. It should not lower substantive safeguards or shift essential elements of fundamental-rights protection into recitals, implementing acts, technical standards, or controller self-assessment.'

Or. en

Amendment 75
Arash Saeidi

Proposal for a regulation
Recital 3 b (new)

Text proposed by the Commission

Amendment

(3b) *Where amendments affect the material scope of Regulation (EU) 2016/679 or Directive 2002/58/EC, the co-legislators should ensure that those amendments are supported by a dedicated impact assessment, including an assessment of cumulative effects on Articles 7, 8 and 47 of the Charter and on the requirements of Article 52(1) of the Charter. Structural amendments to fundamental-rights safeguards should not be justified solely by general references to simplification, competitiveness,*

Amendment 76

Daniel Buda

Proposal for a regulation

Recital 5

Text proposed by the Commission

(5) Acknowledging the iterative evolution of horizontal and sector-specific rules, it is indispensable to address also overlaps in specific provisions that result in unnecessary duplications of administrative burdens. This is the case in requirements across several rules for reporting following cybersecurity and related incidents, where digital solutions, as proposed in this Regulation, can bring an immediate relief to businesses across all concerned sectors.

Amendment

(5) Acknowledging the iterative evolution of horizontal and sector-specific rules, it is indispensable to address also overlaps in specific provisions that result in unnecessary duplications of administrative burdens, ***which create quantifiable time and resource costs for businesses, especially SMEs***. This is the case in requirements across several rules for reporting following cybersecurity and related incidents, where digital solutions, as proposed in this Regulation, can bring an immediate relief to businesses across all concerned sectors, ***particularly SMEs***.

Amendment 77

David Cormand

Proposal for a regulation

Recital 8

Text proposed by the Commission

(8) While the importance of data intermediation services is recognised in the context of many initiatives supporting data sharing and collaboration, the rules of Regulation (EU) 2022/868 on data intermediation service providers should be clarified. In particular, the definition of such providers should be made more

Amendment

(8) While the importance of data intermediation services is recognised in the context of many initiatives supporting data sharing and collaboration, the rules of Regulation (EU) 2022/868 on data intermediation service providers should be clarified. In particular, the definition of such providers should be made more

precise. It should eliminate elements that served merely as illustrative examples, rather than exceptions. Moreover, it should address loopholes resulting from ambiguous formulations, notably as regards the notion of ‘closed group’.

Services should not be eligible to register as data intermediation services where they are exclusively used by a closed group of companies and where any extension of that group of companies can only be decided by that group and not the service provider. More importantly, making this emerging market subject to a compulsory regime has created unnecessary compliance costs. At this stage of market development, a voluntary regime, allowing neutral players to distinguish themselves from other players, appears sufficient. Also, in order to enable sustainable business models, the regime should be made less strict by abolishing the requirement for a legal separation between data intermediation services and other value-added services that a service should be allowed to offer, replacing it with a functional separation while keeping certain safeguards.

The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given

precise. It should eliminate elements that served merely as illustrative examples, rather than exceptions. Moreover, it should address loopholes resulting from ambiguous formulations, notably as regards the notion of ‘closed group’. The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union. on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union.

the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union. on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union.

Or. en

Amendment 78

Laurence Farreng

Proposal for a regulation

Recital 8

Text proposed by the Commission

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costs. At this stage of market development, a voluntary regime, allowing neutral players to distinguish themselves from other players, appears sufficient. Also, in order to enable sustainable business models, the regime should be made less strict by abolishing the requirement for a legal separation between data intermediation services and other value-added services that a service should be allowed to offer, replacing it with a functional separation while keeping certain safeguards. The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union. on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union.

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Amendment 79
Emil Radev

Proposal for a regulation
Recital 8

Text proposed by the Commission

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Or. en

Amendment 80

Daniel Buda

Proposal for a regulation

Recital 9

Text proposed by the Commission

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and safeguards the

Amendment

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incentives of those who invest in data technologies.

incentives of those who invest in data technologies, ***while ensuring a balance between access to data and protection of investments made by businesses in their development.***

Or. ro

Amendment 81
David Cormand

Proposal for a regulation
Recital 10

Text proposed by the Commission

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union. ***However, disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty.***

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Amendment

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union.

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Or. en

Amendment 82
Emil Radev

Proposal for a regulation
Recital 10

Text proposed by the Commission

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union. ***However, disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty.***

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

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¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Or. en

Amendment 83
Emil Radev

Proposal for a regulation
Recital 11

Text proposed by the Commission

Amendment

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets. *deleted*

Or. en

**Amendment 84
David Cormand**

**Proposal for a regulation
Recital 11**

Text proposed by the Commission

Amendment

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. *deleted*

Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

Or. en

Amendment 85
Laurence Farreng

Proposal for a regulation
Recital 11

Text proposed by the Commission

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice.

Amendment

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Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

negotiations with users to reach agreement on such measures. Refusal should only occur if no mutually acceptable measures can be agreed. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. ***Safeguards against abusive use of this ground must be maintained.*** Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

Or. en

Amendment 86
Emil Radev

Proposal for a regulation
Recital 12

Text proposed by the Commission

Amendment

(12) The activation of the refusal mechanism should remain voluntary, and the demonstration done only upon its activation. Data holders should not be required to conduct a full-scale analysis or demonstration of the level of trade secret protection in third countries or by a third country entity as a precondition to be able to substantiate their refusal to sharing data or to disclose trade secrets. In their demonstration, data holders may take into consideration various factors, such as insufficient or inadequate legal standards, poor or arbitrary enforcement, historical infringements, foreign disclosure obligations conflicting with Union law, limited legal recourse or remedies for Union entities, the strategic misuse of procedural tactics to undermine competitors, or undue political influence. Given the diverse range of entities, third

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countries, and data sharing scenarios involved, data holders should focus their assessment and demonstration on pertinent risks and act accordingly, including by setting appropriate safeguards or activating the refusal mechanism. Refusals should be clear, proportionate, and tailored to the specific circumstances of each case, rather than being applied systematically or in a generalized manner across an entire third country.

Or. en

Amendment 87
David Cormand

Proposal for a regulation
Recital 12

Text proposed by the Commission

Amendment

(12) The activation of the refusal mechanism should remain voluntary, and the demonstration done only upon its activation. Data holders should not be required to conduct a full-scale analysis or demonstration of the level of trade secret protection in third countries or by a third country entity as a precondition to be able to substantiate their refusal to sharing data or to disclose trade secrets. In their demonstration, data holders may take into consideration various factors, such as insufficient or inadequate legal standards, poor or arbitrary enforcement, historical infringements, foreign disclosure obligations conflicting with Union law, limited legal recourse or remedies for Union entities, the strategic misuse of procedural tactics to undermine competitors, or undue political influence. Given the diverse range of entities, third countries, and data sharing scenarios involved, data holders should focus their assessment and demonstration on

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pertinent risks and act accordingly, including by setting appropriate safeguards or activating the refusal mechanism. Refusals should be clear, proportionate, and tailored to the specific circumstances of each case, rather than being applied systematically or in a generalized manner across an entire third country.

Or. en

Amendment 88
David Cormand

Proposal for a regulation
Recital 13

Text proposed by the Commission

Amendment

(13) An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses. The objective is therefore to strengthen the safeguards for trade secrets by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks. This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's

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management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or intermediary entities. Control may be exercised directly or through other means, even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.

Or. en

Amendment 89
Emil Radev

Proposal for a regulation
Recital 13

Text proposed by the Commission

Amendment

(13) *An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses. The objective is therefore to strengthen the safeguards for trade secrets by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks. This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these* ***deleted***

jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or intermediary entities. Control may be exercised directly or through other means, even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.

Or. en

Amendment 90
Daniel Buda

Proposal for a regulation
Recital 13

Text proposed by the Commission

(13) An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses. The objective is therefore to strengthen the safeguards for trade secrets by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks. This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws

Amendment

(13) An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses, ***particularly SMEs, which lack the developed infrastructures needed to ensure effective protection in this regard.*** The objective is therefore to strengthen the safeguards for trade secrets, ***especially*** by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks. This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject

or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or intermediary entities. Control may be exercised directly or through other means, even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.

to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or intermediary entities. Control may be exercised directly or through other means, even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.

Or. ro

Amendment 91

Emil Radev

Proposal for a regulation

Recital 14

Text proposed by the Commission

Amendment

(14) Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's

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obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.

Or. en

Amendment 92
David Cormand

Proposal for a regulation
Recital 14

Text proposed by the Commission

(14) *Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and*

Amendment

(14) *Trade secret should not be used as a pretext to deny legitimate access to data. Any refusal of access to data protected by a trade secret must constitute a measure of last resort. Before refusing access, the data holder must offer a viable and secure alternative. This alternative must guarantee legitimate data use while ensuring the non-disclosure of trade secrets. Such alternatives may include confidentiality agreements, restricted access protocols subject to regular audits, technical measures for data aggregation or anonymization, technical architectures and standards that preserve confidentiality.*

proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.

Or. en

Amendment 93
Laurence Farreng

Proposal for a regulation
Recital 15

Text proposed by the Commission

Amendment

(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities that previously imposed broader obligations on businesses, it is necessary to narrow the scope of Chapter V of that Regulation from 'exceptional need' to 'public emergencies'. The concept of 'public emergencies', which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are invoked only under well-defined, urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant and proportionate to responding, mitigating, or supporting the recovery from public emergencies. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council¹¹ does not address public emergencies, it is essential to preserve the

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role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case such enterprises are allowed to claim compensation.

¹¹ Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No 322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).

Or. en

Amendment 94
David Cormand

Proposal for a regulation
Recital 15

Text proposed by the Commission

Amendment

(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities that previously imposed broader obligations on businesses, it is necessary to narrow the scope of Chapter V of that Regulation

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from ‘exceptional need’ to ‘public emergencies’. The concept of ‘public emergencies’, which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are invoked only under well-defined, urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant and proportionate to responding, mitigating, or supporting the recovery from public emergencies. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council¹¹ does not address public emergencies, it is essential to preserve the role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case such enterprises are allowed to claim compensation.

¹¹ *Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No 322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).*

Amendment 95

Daniel Buda

Proposal for a regulation

Recital 15

Text proposed by the Commission

(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities that previously imposed broader obligations on businesses, it is necessary to narrow the scope of Chapter V of that Regulation from ‘exceptional need’ to ‘public emergencies’. The concept of ‘public emergencies’, which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are invoked only under well-defined, urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant and proportionate to responding, mitigating, or supporting the recovery from public emergencies. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council¹¹ does not address public emergencies, it is essential to preserve the role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case *such* enterprises are allowed to claim compensation.

Amendment

(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities *and overlaps in texts* that previously imposed broader obligations on businesses, *including SMEs*, it is necessary to narrow the scope of Chapter V of that Regulation from ‘exceptional need’ to ‘public emergencies’. The concept of ‘public emergencies’, which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are invoked only under well-defined *and proportionately justified* urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant *in terms of justification* and proportionate to responding, mitigating, or supporting *rapid* recovery from public emergencies. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council¹¹ does not address public emergencies, it is essential to preserve the role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity, *simplification* and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case *such* enterprises are allowed to claim compensation *as soon*

as possible.

¹¹ Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No 322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).

¹¹ Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No 322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).

Or. ro

Amendment 96
David Cormand

Proposal for a regulation
Recital 16

Text proposed by the Commission

(16) In order to mitigate legal uncertainties that could discourage innovative business models, it is necessary to address the substantial compliance ambiguities and burdens associated with the provisions on smart contracts executing data sharing agreements under Article 36 of Regulation (EU) 2023/2854. The absence of harmonised standards and clear definitions for key concepts such as ‘robustness’, ‘access control’, and ‘consistency with contractual terms’, combined with the requirement for a ‘safe termination or interruption mechanism’ potentially incompatible with decentralised or public blockchain architectures built on immutable ledgers, posed challenges to innovators from a

Amendment

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cost and opportunity perspective. Additionally, the ambiguity surrounding the performance of the conformity assessment under Article 36(2) of that Regulation risks imposing disproportionate burdens. The elimination of Article 36 of Regulation (EU) 2023/2854 would therefore promote the development and market introduction of new business models, foster innovation, and reduce barriers for emerging technologies.

Or. en

Amendment 97
David Cormand

Proposal for a regulation
Recital 17

Text proposed by the Commission

Amendment

(17) Certain data processing services, which do not fall within the Infrastructure as a Service (IaaS) delivery model, are custom-made to the needs or ecosystem of a customer. The provision of such data processing services is based on time-intensive pre-contractual and contractual negotiations to determine the specific requirements of the customer and subsequent technical efforts to customise the data processing service and to deliver a tailored solution. Those are services not provided off-the-shelf and are personalised to the needs of a customer to provide a tailored solution where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer where the majority of features and functionalities would not be usable for a customer without prior adaptation by the provider. Those services differ from custom-built data processing services referred to in Article 31(1) of

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Regulation (EU) 2023/2854. Custom-built data processing services are services of which the majority of main features has been custom-built to accommodate the specific needs of an individual customer or where those data processing services are not offered at broad commercial scale via the service catalogue of the provider. To avoid additional costs and administrative burden connected to the need to reopen and renegotiate contracts concluded before or on 12 September 2025, it is necessary to clarify that, with the exception of the obligation to reduce and ultimately remove switching and egress charges, custom-made services provided according to contracts concluded before or on 12 September 2025 should not fall within scope of Chapter VI of Regulation (EU) 2023/2854.

Or. en

Amendment 98
David Cormand

Proposal for a regulation
Recital 18

Text proposed by the Commission

Amendment

(18) For reasons relating to financial planning and attracting investment, providers of data processing services, especially SMEs and SMCs, may prefer and offer contracts of a fixed duration. It is necessary to clarify that providers of data processing services may include provisions on proportionate early termination penalties in those contracts as long as they do not constitute an obstacle to switching. In addition, providers of data processing services that are SMEs or SMCs are particularly burdened by the need to align existing contracts for the provision of data processing services to Regulation (EU) 2023/2854. It is

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therefore necessary to establish a specific regime for those providers if they provide data processing services, other than IaaS, based on contracts concluded before or on 12 September 2025. Taking into account the aim of Regulation (EU) 2023/2854 to enable switching between data processing services and given that switching charges, including egress charges, constitute a serious obstacle to switching, the new lighter regimes for data processing services that are custom-made or are provided by SMEs or SMCs should not undermine the gradual withdrawal of those charges. Contractual provisions running contrary to that objective should be considered to never have existed, if they are included in contractual agreements on the provision of services falling within the scope of those two new specific regimes.

Or. en

Amendment 99
Daniel Buda

Proposal for a regulation
Recital 18

Text proposed by the Commission

(18) For reasons relating to financial planning and attracting investment, providers of data processing services, especially SMEs and SMCs, may prefer and offer contracts of a fixed duration. It is necessary to clarify that providers of data processing services may include provisions on proportionate early termination penalties in those contracts as long as they do not constitute an obstacle to switching. In addition, providers of data processing services that are SMEs or SMCs are particularly burdened by the need to align existing contracts for the provision of data processing services to Regulation (EU)

Amendment

(18) For reasons relating to financial planning and attracting investment, providers of data processing services, especially SMEs and SMCs, may prefer and offer contracts of a fixed duration. It is necessary to clarify that providers of data processing services may include provisions on proportionate early termination penalties in those contracts as long as they do not constitute an obstacle to switching. In addition, providers of data processing services that are SMEs or SMCs are particularly burdened by the need to align existing contracts for the provision of data processing services to Regulation (EU)

2023/2854. It is therefore necessary to establish a specific regime for those providers if they provide data processing services, other than IaaS, based on contracts concluded before or on 12 September 2025. Taking into account the aim of Regulation (EU) 2023/2854 to enable switching between data processing services and given that switching charges, including egress charges, constitute a serious obstacle to switching, the new lighter regimes for data processing services that are custom-made or are provided by SMEs or SMCs ***should not undermine the gradual withdrawal of those charges.*** Contractual provisions running contrary to that objective should be considered to never have existed, if they are included in contractual agreements on the provision of services falling within the scope of those two new specific regimes.

2023/2854. It is therefore necessary to establish a specific regime for those providers if they provide data processing services, other than IaaS, based on contracts concluded before or on 12 September 2025. Taking into account the aim of Regulation (EU) 2023/2854 to enable switching between data processing services and given that switching charges, including egress charges, constitute a serious obstacle to switching, the new lighter regimes for data processing services that are custom-made or are provided by SMEs or SMCs, ***taking into account their limited administrative and financial capacity and avoiding the imposition of disproportionate obligations.*** Contractual provisions running contrary to that objective should be considered to never have existed, if they are included in contractual agreements on the provision of services falling within the scope of those two new specific regimes.

Or. ro

Amendment 100
Daniel Buda

Proposal for a regulation
Recital 18 a (new)

Text proposed by the Commission

Amendment

(18a) Making the digital legislative framework simpler and more flexible and adapting it should help to speed up innovation and the digital transformation of European businesses, particularly in regions with disproportionate levels of digitalisation, including in Member States in central and eastern Europe.

Or. ro

Amendment 101
Daniel Buda

Proposal for a regulation
Recital 18 b (new)

Text proposed by the Commission

Amendment

(18b) The application of this Regulation should take into account the need to strengthen the competitiveness of European businesses with respect to their global competitors and the avoidance of disproportionate compliance costs.

Or. ro

Amendment 102
David Cormand

Proposal for a regulation
Recital 21

Text proposed by the Commission

Amendment

(21) Both Directive (EU) 2019/1024 and Chapter II of Regulation (EU) 2022/868 regulate the re-use of public sector information for innovation purposes. The interplay of the two sets of rules has created legal uncertainty, mainly for public sector bodies. An alignment of the rules in one legal instrument is therefore necessary to bring further legal coherence and certainty.

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Or. en

Amendment 103
Emil Radev

Proposal for a regulation
Recital 22

Text proposed by the Commission

(22) Since both Directive (EU) 2019/1024 and Regulation (EU) 2022/868 share the goal of enhancing the re-use of public sector information, and *inn* order to simplify rules from the perspective of both public sector bodies and of re-users of public sector information, it is rational to repeal Directive (EU) 2019/1024 and Regulation (EU) 2022/868 and align the two regimes and consolidate the rules in a single Chapter under this Regulation. This solution will increase harmonisation of those rules across the Union, reduce the administrative burden associated with interpreting and implementing national legislation and make it easier for businesses to develop cross-border services and products. When designating competent bodies, Member States should ensure that even where sector-specific competent bodies are designated, all relevant sectors are ultimately covered. The amendments in this Regulation should be understood not to alter the interpretation of the different definition and terms, unless clearly specified.

Amendment

(22) Since both Directive (EU) 2019/1024 and Regulation (EU) 2022/868 share the goal of enhancing the re-use of public sector information, and *in* order to simplify rules from the perspective of both public sector bodies and of re-users of public sector information, it is rational to repeal Directive (EU) 2019/1024 and Regulation (EU) 2022/868 and align the two regimes and consolidate the rules in a single Chapter under this Regulation. This solution will increase harmonisation of those rules across the Union, reduce the administrative burden associated with interpreting and implementing national legislation and make it easier for businesses to develop cross-border services and products. When designating competent bodies, Member States should ensure that even where sector-specific competent bodies are designated, all relevant sectors are ultimately covered. The amendments in this Regulation should be understood not to alter the interpretation of the different definition and terms, unless clearly specified.

Or. en

Amendment 104
David Cormand

Proposal for a regulation
Recital 24

Text proposed by the Commission

(24) The existing rules should be streamlined to enhance clarity and consistency. Nevertheless, the two reuse regimes should remain distinct and their respective scope of application should continue to depend on the characteristics of the data or documents and the context of their reuse. Public sector bodies should

Amendment

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apply the open data regime whenever possible. Only where they determine that data or a document contains information corresponding to certain categories of protected data should they limit its public availability and consider making it available for reuse as protected data.

Or. en

Amendment 105
Victor Negrescu

Proposal for a regulation
Recital 24

Text proposed by the Commission

(24) The existing rules should be streamlined to enhance clarity and consistency. Nevertheless, the two reuse regimes should remain distinct and their respective scope of application should continue to depend on the characteristics of the data or documents and the context of their reuse. Public sector bodies should apply the open data regime whenever possible. Only where they determine that data or a document contains information corresponding to certain categories of protected data should they limit its public availability and consider making it available for reuse as protected data.

Amendment

(24) The existing rules should be streamlined to enhance clarity and consistency. Nevertheless, the two reuse regimes should remain distinct and their respective scope of application should continue to depend on the characteristics of the data or documents and the context of their reuse. Public sector bodies should apply the open data regime whenever possible ***and give priority to making data and documents available in machine-readable, open and interoperable formats, on a non-discriminatory basis and under standard open licences, where appropriate.*** Only where they determine that data or a document contains information corresponding to certain categories of protected data should they limit its public availability and consider making it available for reuse as protected data ***under proportionate conditions that are strictly necessary to protect those interests.***

Or. en

Amendment 106

Proposal for a regulation
Recital 25

Text proposed by the Commission

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

Amendment

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use. ***Such charges and fees may apply exceptionally pertaining to open data, in conformity with the provisions of Directive (EU) 2019/1024 on open data and the re-use of public sector information establishing the principle of open licences for such data and content, to be freely accessed, used, modified and***

*shared by anyone for any purpose, and
which rely on open data formats;*

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

Or. en

Amendment 107 **Victor Negrescu**

Proposal for a regulation **Recital 25**

Text proposed by the Commission

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to

Amendment

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to

address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

At the same time, licences for start-ups, small enterprises and medium-sized enterprises should be designed to facilitate their effective re-use of data and documents, by limiting charges and fees to cost recovery, using standard licences and minimising administrative complexity, in order to support innovation, competition and cohesion in the internal market.

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

Or. en

Amendment 108
Emil Radev

Proposal for a regulation

Recital 25

Text proposed by the Commission

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair

Amendment

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation **(EU)** 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair

markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

Or. en

Amendment 109
Victor Negrescu

Proposal for a regulation
Recital 26

Text proposed by the Commission

(26) In the spirit of fostering innovation and maintaining fair competition within the Union's digital market, it is imperative to ensure that access to and reuse of public sector data benefit a wide range of market participants and do not inadvertently reinforce existing dominant positions. Very large enterprises, and in particular undertakings designated as gatekeepers under Regulation (EU) 2022/1925, hold significant power and influence over the internal market. To prevent such entities from leveraging their substantial means to the detriment of fair competition and innovation, public sector bodies should be able to set out higher charges and fees for the re-use of open government data and protected data. Such higher charges and fees should be proportionate and should be based on objective criteria, taking into consideration the economic power and the entity's ability to acquire data. This measure serves to safeguard opportunities for smaller businesses and new market entrants to innovate and compete in the digital economy.

Amendment

(26) In the spirit of fostering innovation and maintaining fair competition within the Union's digital market, it is imperative to ensure that access to and reuse of public sector data benefit a wide range of market participants and do not inadvertently reinforce existing dominant positions. Very large enterprises, and in particular undertakings designated as gatekeepers under Regulation (EU) 2022/1925, hold significant power and influence over the internal market. To prevent such entities from leveraging their substantial means to the detriment of fair competition and innovation, public sector bodies should be able to set out higher charges and fees for the re-use of open government data and protected data. Such higher charges and fees should be proportionate and should be based on objective criteria, taking into consideration the economic power and the entity's ability to acquire data. This measure serves to safeguard opportunities for smaller businesses and new market entrants to innovate and compete in the digital economy ***across all regions of the Union, including less digitally developed areas, thereby contributing to economic, social and territorial cohesion.***

Or. en

Amendment 110
Daniel Buda

Proposal for a regulation
Recital 27

Text proposed by the Commission

Amendment

[...]

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Or. ro

Justification

Textul nu reflectă în mod adecvat jurisprudența CJUE, merge dincolo de aceasta și nu are în vedere ansamblul practicii judiciare relevante. Modificarea ar conduce la o restrângere a conceptului de date cu caracter personal cu impact direct asupra drepturilor fundamentale. În plus, stabilirea momentului în care datele nu mai sunt personale după pseudonimizare afectează direct domeniul de aplicare al dreptului UE și nu ar trebui reglementată prin acte de punere în aplicare. Abordarea COM pare să excludă anumite date „pseudonimizate” din domeniul de aplicare al Regulamentului (UE) 2016/679, ceea ce contravine înțelegerii actuale potrivit căreia acestea sunt acoperite de regulament și ar putea afecta în mod negativ dreptul fundamental la protecția datelor.

Amendment 111
David Cormand

Proposal for a regulation
Recital 28

Text proposed by the Commission

Amendment

(28) In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of

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principles of reliability, honesty, respect and accountability (verifiability).

Or. en

Amendment 112

Victor Negrescu

Proposal for a regulation

Recital 28

Text proposed by the Commission

(28) In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of principles of reliability, honesty, respect and accountability (verifiability).

Amendment

(28) In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of principles of reliability, honesty, respect and accountability (verifiability). ***Where data are processed for scientific research purposes in the digital sphere, particular attention should be paid to supporting research carried out by universities, public-interest organisations and SMEs, and to promoting open science practices, skills development and digital literacy among researchers and students.***

Or. en

Amendment 113

Emil Radev

Proposal for a regulation

Recital 28

Text proposed by the Commission

Amendment

(28) In order to assess whether **research** meets the conditions of scientific research for the purpose of this Regulation, account **can** be taken of **elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of principles of reliability, honesty, respect and accountability (verifiability).**

(28) In order to assess whether **an activity** meets the conditions of **being** scientific research for the purpose of this Regulation, account **should** be taken of **the following characteristics: novelty, creativity, uncertainty, systematic and transferable/reproducible. Consideration should also be given to the purpose of the activity, which should primarily aim at new findings, based on original concepts (and their interpretation) or hypotheses. The Frascati Manual will be the main reference for this assessment.**

Or. en

Amendment 114

David Cormand

Proposal for a regulation

Recital 29

Text proposed by the Commission

Amendment

(29) ***It should be reiterated that further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes should be considered to be compatible lawful processing operations. In such cases it is not necessary to ascertain on the basis of Article 6(4) of this Regulation whether the purpose of the further processing is compatible with the purpose for which the personal data are initially collected.***

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Or. en

Amendment 115

Emil Radev

Proposal for a regulation
Recital 29

Text proposed by the Commission

(29) It should be reiterated that further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes should be considered to be compatible lawful processing operations. In such cases it is not necessary to ascertain on the basis of Article 6(4) of this Regulation whether the purpose of the further processing is compatible with the purpose for which the personal data are initially collected.

Amendment

(29) It should be reiterated that further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes should be considered to be compatible lawful processing operations. In such cases it is not necessary to ascertain on the basis of Article 6(4) of this Regulation whether the purpose of the further processing is compatible with the purpose for which the personal data are initially collected. ***The controller does not require a new legal basis for further compatible processing or derogation under Article 9(2) subject to the application of appropriate safeguards in accordance with Article 89(1).***

Or. en

Amendment 116
David Cormand

Proposal for a regulation
Recital 30

Text proposed by the Commission

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be

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carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 117
David Cormand

Proposal for a regulation
Recital 31

Text proposed by the Commission

Amendment

(31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the

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data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data, respecting technical indications embedded in a service limiting the use of data for AI development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.

Or. en

Amendment 118
Victor Negrescu

Proposal for a regulation
Recital 31

Text proposed by the Commission

(31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the

Amendment

(31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the

data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data, respecting technical indications embedded in a service limiting the use of data for AI development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.

data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data, respecting technical indications embedded in a service limiting the use of data for AI development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions. *When AI systems and models are trained or deployed on the basis of such legitimate interests, particular care should be taken to ensure that their use does not exacerbate digital exclusion or discrimination of vulnerable groups and that users receive clear, comprehensible information adapted to different levels of digital literacy.*

Or. en

Amendment 119
David Cormand

Proposal for a regulation
Recital 32

Text proposed by the Commission

(32) The processing of personal data for scientific research purposes and the application of the GDPR's provisions on scientific research are conditional on the adoption of appropriate safeguards for the rights and freedoms of data subjects, pursuant to Article 89(1) GDPR. To that end, the GDPR balances the right to protection of personal data, pursuant to Article 8 CFREU, with the freedom of science, pursuant to Article 13 CFREU.

Amendment

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The processing of personal data for the purpose of scientific research therefore pursues a legitimate interest within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, provided that such research is not contrary to Union or Member State law. This is without prejudice to the obligation of the controller to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 120
Arash Saeidi

Proposal for a regulation
Recital 33

Text proposed by the Commission

Amendment

(33) The development of certain AI systems and AI models may involve the collection of large amounts of data, including personal data and special categories thereof. Special categories of personal data may residually exist in the training, testing or validation data sets or be retained in the AI system or the AI model, although the special categories of personal data are not necessary for the purpose of the processing. In order not to disproportionately hinder the development and operation of AI and taking into account the capabilities of the controller to identify and remove special categories of personal data, derogating from the prohibition on processing special categories of personal data under Article 9(2) of Regulation (EU) 2016/679 should be allowed. The derogation should only apply where the controller has implemented appropriate technical and organisational measures in an effective

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manner to avoid the processing of those data, takes the appropriate measures during the entire lifecycle of an AI system or AI model and, once it identifies such data, effectively remove them. If removal would require disproportionate effort, notably where the removal of special categories of data memorised in the AI system or AI model would require re-engineering the AI system or AI model, the controller should effectively protect such data from being used to infer outputs, being disclosed or otherwise made available to third parties. This derogation should not apply where the processing of special categories of personal data is necessary for the purpose of the processing. In this case, the controller should rely on the derogations pursuant to Article 9(2)(a) – (j) of Regulation (EU) 2016/679.

Or. en

Amendment 121
David Cormand

Proposal for a regulation
Recital 33

Text proposed by the Commission

Amendment

(33) *The development of certain AI systems and AI models may involve the collection of large amounts of data, including personal data and special categories thereof. Special categories of personal data may residually exist in the training, testing or validation data sets or be retained in the AI system or the AI model, although the special categories of personal data are not necessary for the purpose of the processing. In order not to disproportionately hinder the development and operation of AI and taking into account the capabilities of the controller to identify and remove special categories*

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of personal data, derogating from the prohibition on processing special categories of personal data under Article 9(2) of Regulation (EU) 2016/679 should be allowed. The derogation should only apply where the controller has implemented appropriate technical and organisational measures in an effective manner to avoid the processing of those data, takes the appropriate measures during the entire lifecycle of an AI system or AI model and, once it identifies such data, effectively remove them. If removal would require disproportionate effort, notably where the removal of special categories of data memorised in the AI system or AI model would require re-engineering the AI system or AI model, the controller should effectively protect such data from being used to infer outputs, being disclosed or otherwise made available to third parties. This derogation should not apply where the processing of special categories of personal data is necessary for the purpose of the processing. In this case, the controller should rely on the derogations pursuant to Article 9(2)(a) – (j) of Regulation (EU) 2016/679.

Or. en

Amendment 122

Arash Saeidi

Proposal for a regulation

Recital 34

Text proposed by the Commission

Amendment

(34) Biometric data, as defined in Article 4(14) of Regulation (EU) 2016/679, means processing of certain characteristics of a natural person through a specific technical means and which allows or confirms the unique identification of that person. The notion **deleted**

of biometric data includes two distinct functions, namely the identification of a natural person or the verification (also called authentication) of his or her claimed identity, both of which rely on different technical processes. The identification process is based on a ‘one-to-many’ search of the data subject’s biometric data in a database, while the verification process is based on a ‘one-to-one’ comparison of biometric data provided by the data subject, who is thereby claiming his or her identity. Derogating from the prohibition to process biometric data under Article 9(1) of the Regulation should also be allowed where the verification of the claimed identity of the data subject is necessary for a purpose pursued by the controller, and suitable safeguards apply to enable the data subject to have sole control of the verification process. For example, where the biometric data are securely stored solely at the side of the data subject or are securely stored at the side of the controller in a state-of-the-art encrypted form and the encryption key or equivalent means is held solely by the data subject, that processing is not likely to create significant risks to his or her fundamental rights and freedoms. The controller does not gain knowledge of the biometric data or only for a very limited time during the verification process.

Or. en

Amendment 123

Arash Saeidi

Proposal for a regulation

Recital 35

Text proposed by the Commission

Amendment

(35) Article 15 of Regulation (EU) 2016/679 provides data subjects with the

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right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and certain additional information. The right of access should allow the data subject to be aware of, and to verify, the lawfulness of the processing and enable him or her to exercise his or her other rights under Regulation (EU) 2016/679. By contrast, it should be clarified in Article 12 of the Regulation that the right of access, which is from the outset favourable to data subjects, should not be abused in the sense that the data subjects abuse them for purposes other than the protection of their data. For example, such an abuse of the right of access would arise where the data subject intends to cause the controller to refuse an access request, in order to subsequently demand the payment of compensation, potentially under the threat of bringing a claim for damages. Other examples of abuse include situations where data subjects make excessive use of the right of access with the only intent of causing damage or harm to the controller or when an individual makes a request, but at the same time offers to withdraw it in return for some form of benefit from the controller. Moreover, in order to keep their burden to a reasonable extent, controllers should bear a lower burden of proof regarding the excessive character of a request than regarding the manifestly unfounded character of a request. The reason is that the manifestly unfounded character of a request depends on facts that lie principally within the controller's sphere of responsibility, whereas the excessive character of a request concerns the possibly abusive conduct of a data subject, which lies primarily outside the controller's sphere of influence, and therefore the controller may be able to prove such abuse only to a reasonable level. In any event, while requesting

access under Article 15 of Regulation (EU) 2016/679 the data subject should be as specific as possible. Overly broad and undifferentiated requests should also be regarded as excessive.

Or. en

Amendment 124
David Cormand

Proposal for a regulation
Recital 35

Text proposed by the Commission

Amendment

(35) Article 15 of Regulation (EU) 2016/679 provides data subjects with the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and certain additional information. The right of access should allow the data subject to be aware of, and to verify, the lawfulness of the processing and enable him or her to exercise his or her other rights under Regulation (EU) 2016/679. By contrast, it should be clarified in Article 12 of the Regulation that the right of access, which is from the outset favourable to data subjects, should not be abused in the sense that the data subjects abuse them for purposes other than the protection of their data. For example, such an abuse of the right of access would arise where the data subject intends to cause the controller to refuse an access request, in order to subsequently demand the payment of compensation, potentially under the threat of bringing a claim for damages. Other examples of abuse include situations where data subjects make excessive use of the right of access with the only intent of causing damage or harm to the controller or when an

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individual makes a request, but at the same time offers to withdraw it in return for some form of benefit from the controller. Moreover, in order to keep their burden to a reasonable extent, controllers should bear a lower burden of proof regarding the excessive character of a request than regarding the manifestly unfounded character of a request. The reason is that the manifestly unfounded character of a request depends on facts that lie principally within the controller's sphere of responsibility, whereas the excessive character of a request concerns the possibly abusive conduct of a data subject, which lies primarily outside the controller's sphere of influence, and therefore the controller may be able to prove such abuse only to a reasonable level. In any event, while requesting access under Article 15 of Regulation (EU) 2016/679 the data subject should be as specific as possible. Overly broad and undifferentiated requests should also be regarded as excessive.

Or. en

Amendment 125

Arash Saeidi

Proposal for a regulation

Recital 36

Text proposed by the Commission

Amendment

[...]

deleted

Or. en

Amendment 126

David Cormand

Proposal for a regulation

Recital 37

Text proposed by the Commission

Amendment

(37) Where the processing takes place for the purpose of scientific research and the provision of information to the data subject proves to be impossible or would involve a disproportionate effort it should not be necessary to provide the information provided for under Article 13 of this Regulation. The controller should make reasonable efforts to acquire contact details if they are readily available and acquisition would not require a disproportionate effort. The provision of the information would involve a disproportionate effort in particular where the controller at the time of collection of the personal data did not know or anticipate that it would process personal data for scientific research purposes at a later stage, in which case it may not have easily available contact details of the data subjects. In such situations the controller should inform data subjects indirectly, such as by making the information publicly available. The provision of such information should ensure that as many data subjects concerned as possible are reached. Relevant means to make the information publicly available should be determined depending on the context of the research project and the data subjects involved.

deleted

Or. en

Amendment 127

Daniel Buda

Proposal for a regulation

Recital 37

Text proposed by the Commission

Amendment

(37) Where the processing takes place

(37) Where the processing takes place

for the purpose of scientific research and the provision of information to the data subject proves to be impossible or would involve a disproportionate effort it should not be necessary to provide the information provided for under Article 13 of this Regulation. The controller should make reasonable efforts to acquire contact details ***if they are readily available*** and acquisition would not require a disproportionate effort. The provision of the information would involve a disproportionate effort in particular where the controller at the time of collection of the personal data did not know or anticipate that it would process personal data for scientific research purposes at a later stage, in which case it may not have easily available contact details of the data subjects. In such situations the controller should inform data subjects indirectly, such as by making the information publicly available. The provision of such information should ensure that as many data subjects concerned as possible are reached. Relevant means to make the information publicly available should be determined depending on the context of the research project and the data subjects involved.

for the purpose of scientific research and the provision of information to the data subject proves to be impossible or would involve a disproportionate effort it should not be necessary to provide the information provided for under Article 13 of this Regulation. The controller should make reasonable efforts to acquire contact details and acquisition would not require a ***considerable*** disproportionate effort. The provision of the information would involve a disproportionate effort in particular where the controller at the time of collection of the personal data did not know or anticipate that it would process personal data for scientific research purposes at a later stage, in which case it may not have easily available contact details of the data subjects. In such situations the controller should inform data subjects indirectly, such as by making the information publicly available ***for a period sufficient to obtain their contact details***. The provision of such information should ensure that as many data subjects concerned as possible are reached. Relevant means to make the information publicly available should be determined depending on the context of the research project and the data subjects involved.

Or. ro

Amendment 128

Arash Saeidi

Proposal for a regulation

Recital 38

Text proposed by the Commission

(38) Article 22 of Regulation (EU) 2016/679 provides for rules governing the processing of personal data when the data controller makes decisions which have legal effects or similarly significant effects on the data subject, based solely on

Amendment

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automated processing. In order to provide greater legal certainty, it should be clarified that decisions based solely on automated processing are allowed when specific conditions are met, as set out in Regulation (EU) 2016/679. It should also be clarified that when assessing whether a decision is necessary for entering into, or performance of, a contract between the data subject and a data controller, as set out in Article 22(2)(a) of Regulation (EU) 2016/679, it should not be required that the decision could be taken only by solely automated processing. This means that the fact that the decision could also be taken by a human does not prevent the controller from taking the decision by solely automated processing. When several equally effective automated processing solutions exist, the controller should use the less intrusive one.

Or. en

Amendment 129

Emil Radev

Proposal for a regulation

Recital 38

Text proposed by the Commission

(38) Article 22 of Regulation (EU) 2016/679 provides for rules governing the processing of personal data when the data controller makes decisions which have legal effects or similarly significant effects on the data subject, based solely on automated processing. In order to provide greater legal certainty, it should be clarified that decisions based solely on automated processing are allowed when specific conditions are met, as set out in Regulation (EU) 2016/679. It should also be clarified that when assessing whether a decision is necessary for entering into, or performance of, a contract between the data subject and

Amendment

(38) Article 22 of Regulation (EU) 2016/679 provides for rules governing the processing of personal data when the data controller makes decisions which have legal effects or similarly significant effects on the data subject, based solely on automated processing. In order to provide greater legal certainty, it should be clarified that decisions based solely on automated processing are allowed when specific conditions are met, as set out in Regulation (EU) 2016/679. It should also be clarified that when assessing whether a decision is necessary for entering into, or performance of, a contract between the data subject and

a data controller, as set out in Article 22(2)(a) of Regulation (EU) 2016/679, it should not be required that the decision could be taken only by solely automated processing. This means that the fact that the decision could also be taken by a human does not prevent the controller from taking the decision by solely automated processing. When several equally effective automated processing solutions exist, the controller should use the less intrusive one.

a data controller, as set out in Article 22(2)(a) of Regulation (EU) 2016/679, it should not be required that the decision could be taken only by solely automated processing. This means that the fact that the decision could also be taken by a human does not prevent the controller from taking the decision by solely automated processing. When several equally effective automated processing solutions exist, the controller should use the less intrusive one.
The requirement to provide “meaningful information about the logic involved” does not oblige controllers to disclose internal algorithms, proprietary logic, or commercially sensitive business knowledge comparable to trade secret.

Or. en

Amendment 130

Victor Negrescu

Proposal for a regulation

Recital 39

Text proposed by the Commission

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation (EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the

Amendment

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation (EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the

breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should prepare a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches.

breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should prepare a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches. ***This simplification of reporting obligations should not weaken cybersecurity standards or the overall level of protection of data subjects, and should be accompanied by clear guidance and, where appropriate, standard templates that facilitate timely, high-quality reporting by controllers of all sizes, including SMEs.***

Or. en

Amendment 131
Emil Radev

Proposal for a regulation
Recital 39

Text proposed by the Commission

Amendment

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation (EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should *prepare* a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. ***The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption.*** In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches.

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation (EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should ***establish and make public*** a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated ***where necessary. The Commission may adopt, by means of an implementing act, the common template as established by the Board as well as its updates*** where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches.

Amendment 132
Emil Radev

Proposal for a regulation
Recital 40

Text proposed by the Commission

(40) Article 35 of *that* Regulation (EU) 2016/679 requires controllers to conduct a data protection impact assessment where the processing of personal data is likely to result in a high risk to the rights and freedoms of natural persons. The supervisory authorities established pursuant to that Regulation are required to establish and make public a list of the kind of processing operations which are subject to the requirement for a data protection impact assessment. In addition, the Regulation provides that supervisory authorities may establish and make public a list of the kind of processing operations for which no data protection impact assessment is required. In order to effectively contribute to the aim of convergence of the economies and to effectively ensure free flow of personal data between Member States, increase legal certainty, facilitate compliance by controllers and ensure a harmonised interpretation of the notion of a high risk to the rights and freedoms of data subjects, a single list of processing operations should be provided at EU level, to replace the existing national lists. In addition, the publication of a list of the type of processing operations for which no data protection impact assessment is required, which is currently optional, should be made mandatory. The lists of processing operations should be prepared by the Board and adopted by the Commission as an implementing act. In order to facilitate compliance by controllers, the Board

Amendment

(40) Article 35 of Regulation (EU) 2016/679 requires controllers to conduct a data protection impact assessment where the processing of personal data is likely to result in a high risk to the rights and freedoms of natural persons. The supervisory authorities established pursuant to that Regulation are required to establish and make public a list of the kind of processing operations which are subject to the requirement for a data protection impact assessment. In addition, the Regulation provides that supervisory authorities may establish and make public a list of the kind of processing operations for which no data protection impact assessment is required. In order to effectively contribute to the aim of convergence of the economies and to effectively ensure free flow of personal data between Member States, increase legal certainty, facilitate compliance by controllers and ensure a harmonised interpretation of the notion of a high risk to the rights and freedoms of data subjects, a single list of processing operations should be provided at EU level, to replace the existing national lists. In addition, the publication of a list of the type of processing operations for which no data protection impact assessment is required, which is currently optional, should be made mandatory. The lists of processing operations should be prepared by the Board and adopted by the Commission as an implementing act. In order to facilitate compliance by controllers, the Board

should also prepare a common template and a common methodology for conducting data protection impact assessments, to be adopted by the Commission as an implementing act. The Commission should take due account of the proposals prepared by the Board and review them, as necessary, prior to adoption. In order to take account of technological developments, the lists and the common template and methodology should be reviewed at least every three years and updated where necessary.

should also prepare a common template and a common methodology for conducting data protection impact assessments, to be adopted by the Commission as an implementing act. The Commission should take due account of the proposals prepared by the Board and review them, as necessary, prior to adoption. In order to take account of technological developments, the lists and the common template and methodology should be reviewed at least every three years and updated where necessary.

Or. en

Amendment 133
Victor Negrescu

Proposal for a regulation
Recital 47

Text proposed by the Commission

(47) Directive 2002/58/EC on privacy and electronic communications ‘ePrivacy Directive’), last revised in 2009, provides a framework for the protection of the right to privacy, including the confidentiality of communications. It also specifies Regulation (EU) 2016/679 in relation to processing of personal data in the context of electronic communication services. It protects the privacy and the integrity of user’s or subscriber’s terminal equipment used for such communications. The current provision of Article 5(3) of Directive 2002/58/EC should remain applicable insofar as the subscriber or user is not a natural person, and the information stored or accessed does not constitute or lead to the processing of personal data.

Amendment

(47) Directive 2002/58/EC on privacy and electronic communications ‘ePrivacy Directive’), last revised in 2009, provides a framework for the protection of the right to privacy, including the confidentiality of communications. It also specifies Regulation (EU) 2016/679 in relation to processing of personal data in the context of electronic communication services. It protects the privacy and the integrity of user’s or subscriber’s terminal equipment used for such communications. The current provision of Article 5(3) of Directive 2002/58/EC should remain applicable insofar as the subscriber or user is not a natural person, and the information stored or accessed does not constitute or lead to the processing of personal data. ***In order to enable users to make informed choices about the processing of their data in the context of electronic communications, the implementation of this Regulation should be accompanied by measures that promote***

digital literacy and awareness, in particular for children, young people and vulnerable users, including through clear information, user-friendly interfaces and, where appropriate, public education initiatives at Union and national level.

Or. en

Amendment 134
Victor Negrescu

Proposal for a regulation
Recital 49

Text proposed by the Commission

(49) Several horizontal or sectorial Union legal acts require the notification of the same event to different authorities using different technical means and channels. The single-entry point for incident reporting should allow entities to fulfil reporting obligations under Directive (EU) 2022/2555, Regulation (EU) 2016/679, Regulation (EU) 2022/2554, Regulation (EU) No 910/2014 and Directive (EU) 2022/2557 by submitting notifications to a single interface. Furthermore, the single-entry point should give a possibility for entities to retrieve information that they have previously submitted using the single-entry point, thereby helping entities to keep track of their compliance with reporting obligations in connection with specific incidents.

Amendment

(49) Several horizontal or sectorial Union legal acts require the notification of the same event to different authorities using different technical means and channels. The single-entry point for incident reporting should allow entities to fulfil reporting obligations under Directive (EU) 2022/2555, Regulation (EU) 2016/679, Regulation (EU) 2022/2554, Regulation (EU) No 910/2014 and Directive (EU) 2022/2557 by submitting notifications to a single interface. Furthermore, the single-entry point should give a possibility for entities to retrieve information that they have previously submitted using the single-entry point, thereby helping entities to keep track of their compliance with reporting obligations in connection with specific incidents. ***The design, documentation and guidance for the single-entry point should be clear, accessible and proportionate, in particular for SMEs, and should promote digital literacy and awareness of cybersecurity obligations among entities required to report incidents.***

Or. en

Amendment 135
Victor Negrescu

Proposal for a regulation
Recital 52

Text proposed by the Commission

(52) To ensure the continuity and interoperability with existing national technical solutions that facilitate incident reporting, to the extent feasible, ENISA should take into account such national technical solutions when developing the specifications on the technical, operational and organisational measures necessary to establish, maintain and securely operate the single-entry point. Further, ENISA should consider technical protocols and tools such as application programming interfaces and machine-readable standards that enable entities to integrate reporting obligations into business processes, and authorities to connect the single-entry point with their national reporting systems.

Amendment

(52) To ensure the continuity and interoperability with existing national technical solutions that facilitate incident reporting, to the extent feasible, ENISA should take into account such national technical solutions when developing the specifications on the technical, operational and organisational measures necessary to establish, maintain and securely operate the single-entry point. Further, ENISA should consider technical protocols and tools such as application programming interfaces and machine-readable standards that enable entities to integrate reporting obligations into business processes, and authorities to connect the single-entry point with their national reporting systems. ***Those measures should be aligned with state-of-the-art cybersecurity practices and ensure a high level of security by design and by default, including robust access control, encryption and logging, so that simplification of reporting does not create new vulnerabilities or weaken the protection of sensitive incident information.***

Or. en

Amendment 136
Emil Radev

Proposal for a regulation
Recital 59

Text proposed by the Commission

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory

Amendment

deleted

rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until the original acts are amended.

Or. en

Amendment 137
David Cormand

Proposal for a regulation
Recital 59

Text proposed by the Commission

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. ***In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until the original acts are amended.***

Amendment

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. ***Streamlined enforcement of these legal instruments is key. Consistency and centralisation of related enforcement measures should be subject to urgent evaluation, in order to guarantee legal security, and duly serve the goal of reducing administrative burden for the regulators and for economic actors.***

Amendment 138
Victor Negrescu

Proposal for a regulation
Recital 60

Text proposed by the Commission

(60) Given the technical nature of the amendments proposed in this Regulation and the urgency to deliver on a simplified legal framework, this Regulation should enter into force immediately after its publication in the Official Journal. As appropriate, transitional periods should be afforded for Member States and regulated entities to adjust to the rules.

Amendment

(60) Given the technical nature of the amendments proposed in this Regulation and the urgency to deliver on a simplified legal framework, this Regulation should enter into force immediately after its publication in the Official Journal. As appropriate, transitional periods should be afforded for Member States and regulated entities to adjust to the rules. ***When defining such transitional periods and accompanying guidance, the specific needs and capacities of micro, small and medium-sized enterprises, public authorities and other entities with limited administrative and technical resources should be taken into account, so that simplification effectively reduces burdens without creating legal uncertainty or implementation gaps.***

Amendment 139
Arash Saeidi

Proposal for a regulation
Recital 60 a (new)

Text proposed by the Commission

Amendment

(60a) Whereas, in the absence of a European legal framework capable of addressing local monopolistic practices of digital platforms outside the scope of the Digital Markets Act (DMA), Regulation

***(EU) 2019/1150 (P2B Regulation)
remains necessary; Whereas the P2B
Regulation continues to provide essential
safeguards for fairness and transparency
in platform-to-business relations in the
digital economy;***

Or. en

**Amendment 140
David Cormand**

**Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1**

Text proposed by the Commission

Amendment

***(ea) voluntary registration of data
intermediation services;*** ***deleted***

Or. en

**Amendment 141
Laurence Farreng**

**Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1 – paragraph 1 – point e a**

Text proposed by the Commission

Amendment

***(ea) voluntary registration of data
intermediation services;*** ***deleted***

Or. en

**Amendment 142
David Cormand**

Proposal for a regulation

Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1

Text proposed by the Commission

Amendment

(eb) voluntary registration of entities which collect and process data made available for altruistic purposes;

deleted

Or. en

Amendment 143
Victor Negrescu

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1

Text proposed by the Commission

Amendment

(ee) the re-use of certain data and documents held by public sector bodies or by certain public undertakings, and of research data.;

(ee) the re-use of certain data and documents held by public sector bodies or by certain public undertakings, and of research data.; ***under open, transparent and non-discriminatory conditions, giving priority to open formats and standard licences where compatible with the protection of personal data, trade secrets and other legitimate interests.***

Or. en

Amendment 144
Daniel Buda

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point e
Regulation (EU) 2023/2854
Article 1 – paragraph 12 a (new)

Text proposed by the Commission

Amendment

(12a) The Commission shall publish

guidance on the uniform application of these additional requirements to prevent fragmentation of the internal market.

Or. ro

Amendment 145
Daniel Buda

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point e
Regulation (EU) 2022/868
Article 1 – paragraph 13

Text proposed by the Commission

13. With regards to data and documents in scope of Section II of Chapter VIIc, Chapter VIIc of this Regulation does not affect the possibility for Member States to adopt more detailed or stricter rules, provided that those rules allow for more extensive re-use of data and documents.’

Amendment

13. With regards to data and documents in scope of Section II of Chapter VIIc, Chapter VIIc of this Regulation does not affect the possibility for Member States to adopt more detailed or stricter rules, provided that those rules allow for more extensive re-use of data and documents, ***in a manner that is proportionate.***’

Or. ro

Amendment 146
Mario Mantovani

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point a
Regulation (EU) 2023/2854
Article 2 – point 4 c

Text proposed by the Commission

(4c) ‘access’ means data use, in accordance with specific technical, legal or organisational requirements, without necessarily implying the transmission or downloading of data;’

Amendment

deleted

Or. it

Justification

The proposed definition runs the risk of seriously undermining the right to access data under the Data Act, as it implies that data can be accessed but not transmitted or downloaded. Data holders could therefore limit access to read-only interfaces and thus prevent users and third parties from processing, storing or combining data, which would contravene a number of provisions and the objectives of the Data Act. In order to guard against this, there should be no definition of ‘access’.

Amendment 147

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a

Regulation (EU) 2023/2854

Article 2 – point 4 c

Text proposed by the Commission

Amendment

(4c) ‘access’ means data use, in accordance with specific technical, legal or organisational requirements, without necessarily implying the transmission or downloading of data;

deleted

Or. en

Amendment 148

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a

Regulation (EU) 2023/2854

Article 2

Text proposed by the Commission

Amendment

(4c) ‘access’ means data use, in accordance with specific technical, legal or organisational requirements, without necessarily implying the transmission or downloading of data;

deleted

Or. en

Amendment 149
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point a
Regulation (EU) 2023/2854
Article 2 – point 4 c a (new)

Text proposed by the Commission

Amendment

(4ca) ‘data intermediation service’ means a service which aims to establish commercial relationships for the purposes of data sharing between an undetermined number of data subjects and data holders on the one hand and data users on the other, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, excluding at least the following:

(a) services that obtain data from data holders and aggregate, enrich or transform the data for the purpose of adding substantial value to it and license the use of the resulting data to data users, without establishing a commercial relationship between data holders and data users;

(b) services that focus on the intermediation of copyright-protected content;

(c) services that are exclusively used by one data holder in order to enable the use of the data held by that data holder, or that are used by multiple legal persons in a closed group, including supplier or customer relationships or collaborations established by contract, in particular those that have as a main objective to ensure the functionalities of objects and devices connected to the Internet of Things;

(d) data sharing services offered by public sector bodies that do not aim to establish

commercial relationships;

Or. en

Justification

The proposed definition implies that access does not necessarily include transmission or downloading, which would undermine effectiveness of the Data Act. There is a contradiction in saying that access does not necessarily implies transmission or download of data. This would allow data holders to limit access to view-only solutions, preventing users from effectively using the data. If this definition of access is not removed, the right of access would remain purely theoretical and ineffective

Amendment 150

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a

Regulation (EU) 2023/2854

Article 2 – point 5

Text proposed by the Commission

Amendment

(4cb) (5) ‘connected product’ means an item that whose primary function is obtaining, generating, or collecting obtains, generates or collects data concerning its use or environment and that is able to communicate product data via an electronic communications service, physical connection or on-device access, and excluding any item whose primary function is not the storing, processing or transmission of data other than data concerning its use or environment on behalf of any party other than the user;

Or. en

Justification

This amendment aims to ensure legal clarity and regulatory consistency by explicitly excluding hardware whose primary function is the processing of regulated financial transactions from the scope of the Regulation. Such hardware is already subject to comprehensive sector-specific requirements under the Union’s financial services framework. Bringing these products simultaneously within the scope of this Regulation would create overlapping and potentially conflicting compliance requirements, resulting in unnecessary

administrative burdens and legal uncertainty. The exclusion is therefore necessary to avoid double regulation, maintain a coherent regulatory framework, and preserve the security, stability and resilience of Europe's payment infrastructure.

Amendment 151

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point c

Regulation (EU) 2023/2854

Article 2

Text proposed by the Commission

Amendment

(c) the following points (28a) and (28b) are inserted: **deleted**

‘(28a) ‘bodies governed by public law’ means bodies that have all of the following characteristics:

(a) they are established for the specific purpose of meeting needs in the general interest, not having an industrial or commercial character;

(b) they have legal personality;

(c) they are financed, for the most part by the State, regional or local authorities, or by other bodies governed by public law; or are subject to management supervision by those authorities or bodies; or have an administrative, managerial or supervisory board, more than half of whose members are appointed by the State, regional or local authorities, or by other bodies governed by public law;

(28b) ‘public undertaking’ means any undertaking over which a public sector body may exercise directly or indirectly a dominant influence by virtue of their ownership of it, their financial participation therein, or the rules which govern it. A dominant influence on the part of the public sector bodies shall be presumed in any of the following cases in which those bodies, directly or indirectly:

(a) hold the majority of the undertaking's subscribed capital;

(b) control the majority of the votes attaching to shares issued by the undertaking;

(c) can appoint more than half of the undertaking's administrative, management or supervisory body;;'

Or. en

Amendment 152

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point c a (new)

Regulation (EU) 2023/2854

Article 2

Text proposed by the Commission

Amendment

(ca) point (29) is replaced by the following:

(29) ‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared in accordance with the relevant procedures under Union or national law; for the purposes of this Regulation, “responding to a public emergency” refers to the immediate actions necessary to address and manage the emergency while it is ongoing, whereas “mitigating or supporting the recovery from a public

emergency” refers to actions taken after or once the immediate phase of the emergency has passed, aimed at limiting its consequences and restoring normal conditions;

Or. en

Amendment 153

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point c a (new)

Regulation (EU) 2023/2854

Article 2 – point 29

Text proposed by the Commission

Amendment

(ca) (29) ‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared in accordance with the relevant procedures under Union or national law; for the purposes of this Regulation, “responding to a public emergency” refers to immediate actions necessary to address and manage the emergency while it is ongoing, whereas “mitigating or supporting the recovery from a public emergency” refers to immediate actions taken after or once the immediate phase of the emergency has passed, aimed at limiting its consequences and restoring normal conditions within a timely

manner;

Or. en

Amendment 154

Brando Benifei

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point c a (new)

Regulation (EU) 2023/2854

Article 2 – point 29

Text proposed by the Commission

Amendment

(ca) (29) ‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared in accordance with the relevant procedures under Union or national law; for the purposes of this Regulation, “responding to a public emergency” refers to the immediate actions necessary to address and manage the emergency while it is ongoing, whereas “supporting the recovery from a public emergency” refers to actions taken after or once the immediate phase of the emergency has passed, aimed at limiting its consequences and restoring normal conditions;

Or. en

Justification

This amendment introduces a clearer and harmonised definition of “public emergency” in order to improve legal certainty and avoid divergent interpretations across Member States. It also helps ensure that emergency-related data access mechanisms remain limited to genuinely exceptional and time-bound situations. It also clarifies the distinction between the immediate response phase of a public emergency and broader mitigation or recovery activities.

Amendment 155

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d – introductory part

Regulation (EU) 2023/2854

Article 2 – point 38 a

Text proposed by the Commission

Amendment

(d) the following *points (38a) and (38b) are* inserted:

(d) the following *point (38a) is* inserted:

Or. en

Amendment 156

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38 a

Text proposed by the Commission

Amendment

(38a) ‘data intermediation service’ means a service which aims to establish relationships of an economic character for the purposes of data sharing between an undetermined number of data subjects or data holders and data users, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, and which:

deleted

(1) do not have as their main purpose the intermediation of copyright-protected

content;

(2) are not jointly procured by several legal persons for exclusive use among them;

Or. en

Amendment 157

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2

Text proposed by the Commission

Amendment

(38a) ‘data intermediation service’ deleted
means a service which aims to establish relationships of an economic character for the purposes of data sharing between an undetermined number of data subjects or data holders and data users, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, and which:

(1) do not have as their main purpose the intermediation of copyright-protected content;

(2) are not jointly procured by several legal persons for exclusive use among them;

Or. en

Amendment 158

Laurence Farreng

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38 a

(38a) ‘data intermediation service’ means a service which aims to establish relationships ***of an economic character*** for the purposes of data sharing between an undetermined number of data subjects ***or*** data holders and data users, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, ***and which:***

(38a) ‘data intermediation service’ means a service which aims to establish ***commercial*** relationships for the purposes of data sharing between an undetermined number of data subjects ***and*** data holders ***on the one hand*** and data users ***on the other***, through technical, legal or other means, including for the purpose of exercising the rights of subjects in relation to personal data, ***excluding at least the following:***

(a) services that obtain data from data holders and aggregate, enrich or transform the data for the purpose of adding substantial value to it and license the use of the resulting data to data users, without establishing a commercial relationship between data holders and data users;

(b) services that focus on the intermediation of copyright-protected content;

(c) services that are exclusively used by one data holder in order to enable the use of the data held by that data holder, or that are used by multiple legal persons in a closed group, including supplier or customer relationships or collaborations established by contract, in particular those that have as a main objective to ensure the functionalities of objects and devices connected to the Internet of Things;

(d) data sharing services offered by public sector bodies that do not aim to establish commercial relationships;

Or. en

Amendment 159
Laurence Farreng

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d
Regulation (EU) 2023/2854
Article 2 – point 38 a

Text proposed by the Commission

Amendment

**(1) do not have as their main purpose
the intermediation of copyright-protected
content;**

deleted

Or. en

Amendment 160
Laurence Farreng

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d
Regulation (EU) 2023/2854
Article 2 – point 38 a

Text proposed by the Commission

Amendment

**(2) are not jointly procured by several
legal persons for exclusive use among
them;**

deleted

Or. en

Amendment 161
David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d
Regulation (EU) 2023/2854
Article 2 – point 38 b

Text proposed by the Commission

Amendment

(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond compensation

(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond **fair**

related to the costs that they incur where they make their data available for objectives of general interest as provided for in national law, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

compensation related to the **actual** costs that they incur where they make their data available for objectives of general interest as provided for in national law, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

Or. en

Amendment 162
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point d
Regulation (EU) 2023/2854
Article 2 – point 38

Text proposed by the Commission

Amendment

(38ba) The following point (38c) is inserted:

“Data altruism organisation” means a legal person operating on a not-for-profit basis and independently from any for-profit entity, which carries out activities enabling the voluntary sharing and use of personal or non-personal data for objectives of general interest.

Or. en

Justification

Justification: Due to the loss of certain provisions on data altruism organisations an explicit definition of data altruism organisations is suggested.

Amendment 163
David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e
Regulation (EU) 2023/2854
Article 2 – point 50

Text proposed by the Commission

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings and results;

Amendment

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings and results. ***It also includes research information, such as abstracts, citations, metadata and other information used to understand and assess research;***

Or. en

Amendment 164
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point e
Regulation (EU) 2023/2854
Article 2 – point 51

Text proposed by the Commission

(51) ‘re-use’ means the use by natural ***persons*** or legal ***entities of*** documents held by:

Amendment

(51) ‘re-use’ means the use by natural or legal ***persons of data or*** documents held by:

Or. en

Amendment 165
Victor Negrescu

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point e
Regulation (EU) 2023/2854
Article 2

Text proposed by the Commission

(b) public undertakings, under Chapter VIIc Section 2 for commercial or non-commercial purposes other than for the initial purpose of providing services in the general interest for which the documents were produced, except for the exchange of documents between public undertakings and public sector bodies purely in pursuit of the public tasks of public sector bodies;

Amendment

(b) public undertakings, under Chapter VIIc Section 2 for commercial or non-commercial purposes other than for the initial purpose of providing services in the general interest for which the documents were produced, except for the exchange of documents between public undertakings and public sector bodies purely in pursuit of the public tasks of public sector bodies; ***such re-use should, where possible, take place under open, standardised and interoperable conditions that facilitate cross-border and cross-sector use, in particular by SMEs and public-interest actors.***

Or. en

Amendment 166
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 3
Regulation (EU) 2023/2854
Article 4 – paragraph 8

Text proposed by the Commission

8. ***In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-***

Amendment

8. Where the data holder who is a trade secret holder ***finds that, the data requested may result in*** the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third ***party***, that data holder may refuse a request for access to the specific data in question. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the ***user requesting the data.*** ***The Commission shall issue guidance in consultation with the stakeholders, on the application of this paragraph.***

by-case basis a request for access to the specific data in question. *That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay.* Where the data holder refuses to share data pursuant to this paragraph, it shall notify the *competent authority designated pursuant to Article 37.*;

Or. en

Justification

This amendment strengthens the protection of trade secrets by allowing data holders to refuse access where there is a risk of unlawful acquisition, use or disclosure of confidential business information. It helps safeguard innovation, competitiveness and sensitive commercial assets, while providing additional guidance for the consistent application of the provision.

Amendment 167 **Laurence Farreng**

Proposal for a regulation **Article 1 – paragraph 1 – point 3** Regulation (EU) 2023/2854 Article 4 – paragraph 8

Text proposed by the Commission

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities,

Amendment

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities,

which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder *may* refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder *shall first propose to the user specific technical and organisational measures to preserve the confidentiality of the trade secrets in question. The user and data holder shall engage in good faith negotiations to reach agreement on such measures within a reasonable timeframe. The data holder may only* refuse on a case-by-case basis a request for access to the specific data in question *if no mutually acceptable measures can be agreed*. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37, *specifying the measures proposed and the reasons why no agreement could be reached*.

Or. en

Amendment 168
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 3
Regulation (EU) 2023/2854
Article 4 – paragraph 8

Text proposed by the Commission

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6

Amendment

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6

of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure, ***notably*** to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse ***withhold or, as the case may be, suspend the sharing of data identified as trade secrets*** on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.'

Decisions regarding refusal to grant access to the concerned data shall be subject to review. This review shall be carried out by an independent authority. The authority shall act transparently towards the requesting user or recipient. It shall also provide effective redress.

Or. en

Amendment 169
Mario Mantovani

Proposal for a regulation
Article 1 – paragraph 1 – point 3
Regulation (EU) 2023/2854
Article 4 – paragraph 8

‘8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets ***or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law***, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, ***such as the enforceability of trade secrets protection in third countries***, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;

‘8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration ***must prove that the refusal is necessary and proportionate and*** shall be duly substantiated on the basis of objective elements ***and*** the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay ***and shall contain detailed, verifiable and evidence-based reasoning justifying the refusal***. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37. ***The refusal shall be reviewed by the competent authority or another independent dispute settlement body pursuant to this Regulation.***’;

Or. it

Justification

The proposed extension of the trade secrets safeguard, which is intended to guard against the risk of trade secrets being disclosed to third countries, provides further grounds for refusal which run the risk of undermining the objectives of the Data Act by allowing original equipment manufacturers to systematically limit SMEs from accessing data. SMEs often lack the wherewithal to assess complex corporate structures or demonstrate that their requests are devoid of risk. The burden of proof should continue to be with the data holder; safeguards should be applied restrictively, and refusals should be duly substantiated and subject to independent review.

Amendment 170

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8

Text proposed by the Commission

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the *specific* data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Amendment

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case **or categorial** basis a request for access to the data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Or. en

Amendment 171

Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 3
Regulation (EU) 2023/2854
Article 4 – paragraph 13

Text proposed by the Commission

Amendment

8a. Article 4, paragraph 13 is amended as follows:

13. A data holder is entitled to shall only use any readily available data that is non-personal data on the basis of a contract with the user. Such use shall be without prejudice to Regulation (EU) 2016/679 and shall comply with Union and national law on the protection of trade secrets and intellectual property rights. A data holder shall not use such data to derive insights about the economic situation, assets and production methods of, or the use by, the user in any other manner that could undermine the commercial position of that user on the markets in which the user is active.

Or. en

Justification

This amendment clarifies that the use of non-personal data does not require additional user consent or contractual arrangements. It enhances legal certainty, reduces unnecessary administrative burdens and facilitates the effective use of non-personal data in line with the objectives of the Regulation.

Amendment 172
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 4
Regulation (EU) 2023/2854
Article 5 – paragraph 11

Text proposed by the Commission

Amendment

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite

11. Where the data holder who is a trade secret holder finds that the data requested may result in disclosure of trade

the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure that data holder may refuse on a case-by-case basis a request for access to the specific data in question. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the ***user requesting the data.***

Or. en

Amendment 173

Ton Diepeveen, Pascale Piera

Proposal for a regulation
Article 1 – paragraph 1 – point 4
 Regulation (EU) 2023/2854
 Article 5 – paragraph 11

Text proposed by the Commission

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to

Amendment

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate, ***or where there are reasonable grounds based on generally available information to***

paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. ***That demonstration shall be duly*** substantiated on the basis of objective elements, ***such as the*** enforceability of trade secrets ***protection in third countries***, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. ***It*** shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

conclude, that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. ***Such refusal may be*** substantiated on the basis of objective elements, ***including generally known deficiencies in the protection or*** enforceability of trade secrets ***in the relevant jurisdiction***, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. ***Data holders shall not be required to undertake a comprehensive assessment of foreign legal systems, enforcement practices, or international law in order to rely on this paragraph. In particular, small and medium-sized enterprises should be entitled to rely on publicly available information and generally recognised risks when assessing the likelihood of unlawful acquisition, use, or disclosure. The reasons for the refusal*** shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.

Or. en

Justification

For companies it might not always be possible to provide the necessary proof of such high-risk, specifically for smaller companies. It should therefore not be required of individual companies to undertake a costly assessment of international law and practices. Refusing a data sharing request should be possible on the basis of general knowledge.

Amendment 174
Laurence Farreng

Proposal for a regulation
Article 1 – paragraph 1 – point 4
Regulation (EU) 2023/2854
Article 5 – paragraph 11

Text proposed by the Commission

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder *may* refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Amendment

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder ***shall first propose to the third party specific technical and organisational measures to preserve the confidentiality of the trade secrets in question. The third party and data holder shall engage in good faith negotiations to reach agreement on such measures within a reasonable timeframe. The data holder may only*** refuse on a case-by-case basis a request for access to the specific data in question ***if no mutually acceptable measures can be agreed***. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data

holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37, ***specifying the measures proposed and the reasons why no agreement could be reached.***

Or. en

Amendment 175
Mario Mantovani

Proposal for a regulation
Article 1 – paragraph 1 – point 4
Regulation (EU) 2023/2854
Article 5 – paragraph 11

Text proposed by the Commission

‘11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets ***or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law,*** that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, ***such as the enforceability of trade secrets protection in third countries,*** the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data

Amendment

‘11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements ***which clearly demonstrate that the refusal is strictly necessary and proportionate, including*** the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay ***and shall contain detailed, verifiable reasons justifying the refusal.*** Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37. ***The refusal shall be reviewed by the competent authority or another independent dispute settlement body pursuant to this***

holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;

Regulation.’;

Or. it

Justification

The additional grounds for refusal, i.e. the risk of disclosure to third countries, serve to undermine the right to access data under the Data Act. SMEs are often unable to appeal a refusal or assess the complex corporate structures adduced in support of such, which runs the risk of unduly limiting their access to data for the purposes of innovation, repairs, maintenance and after-sales service. Limiting refusals to cases where there is clear evidence of serious economic harm and providing for an independent review would prevent vexatious requests while continuing to protect trade secrets.

Amendment 176

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – paragraph 11

Text proposed by the Commission

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated

Amendment

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure, **notably** to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated

on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Or. en

Amendment 177
Mario Mantovani

Proposal for a regulation
Article 1 – paragraph 1 – point 4 a (new)
Regulation (EU) 2016/679
Article 13

Text proposed by the Commission

Amendment

4a. Article 13 is replaced by the following:

‘The requirement to provide information shall not apply to low-risk situations. For the purposes of this Article, the European Data Protection Board shall draw up a list of low-risk data processing activities and keep it updated. The list shall be reviewed on a regular basis to reflect technological developments.’

Or. it

Justification

While the dispensation provided is welcome, it is pointless without a clear definition of ‘low risk’. This amendment seeks to establish a basic white list, which should be revised so as not to stymie innovation in the future.

Amendment 178

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 4 a (new)

Regulation (EU) 2023/2854

Article 13

Text proposed by the Commission

Amendment

4a. Article 13 is amended as follows:

A paragraph 10 is added:

(10) The provisions of this article should also apply to individuals and institutions carrying out scientific research, ensuring that they benefit from no less favourable terms than enterprises.

Or. en

Amendment 179

Laurence Farreng

Proposal for a regulation

Article 1 – paragraph 1 – point 5

Regulation (EU) 2023/2854

Chapter V – title

Text proposed by the Commission

Amendment

**MAKING DATA AVAILABLE TO
PUBLIC SECTOR BODIES, THE
COMMISSION, THE EUROPEAN
CENTRAL BANK AND UNION BODIES
ON THE BASIS OF A PUBLIC
EMERGENCY;**

deleted

Or. en

Amendment 180

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 5

Regulation (EU) 2023/2854

Chapter V

Text proposed by the Commission

MAKING DATA AVAILABLE TO PUBLIC SECTOR BODIES, THE COMMISSION, THE EUROPEAN CENTRAL BANK AND UNION BODIES ON THE BASIS OF A PUBLIC EMERGENCY;

Amendment

MAKING DATA AVAILABLE TO PUBLIC SECTOR BODIES, THE COMMISSION, THE EUROPEAN CENTRAL BANK AND UNION BODIES ON THE BASIS OF A PUBLIC EMERGENCY **AND OTHER EXCEPTIONAL NEEDS**;

Or. en

Amendment 181 **Laurence Farreng**

Proposal for a regulation **Article 1 – paragraph 1 – point 6**

Text proposed by the Commission

6. Articles 14 and 15 are deleted;

Amendment

deleted

Or. en

Amendment 182 **David Cormand**

Proposal for a regulation **Article 1 – paragraph 1 – point 6** Regulation (EU) 2023/2854 Article 14 and Article 15

Text proposed by the Commission

6. Articles 14 and 15 are deleted;

Amendment

deleted

Or. en

Amendment 183 **Laurence Farreng**

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15 a

Text proposed by the Commission

Amendment

7. the following Article 15a is inserted: **deleted**

‘Article 15a

Obligation for data holders to make data available on the basis of a public emergency

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to address the public emergency, personal data may also be requested and, where possible, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their

protection.

3. Where the data requested are necessary to mitigate or support the recovery from a public emergency, a requesting body pursuant to paragraph 1 acting on the basis of Union or national law, may request specific non-personal data, the lack of which prevent it from mitigating or supporting the recovery from a public emergency. Such requests shall not be made to microenterprises and small enterprises.;'

Or. en

Amendment 184

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15 a – paragraph 1

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, ***mitigating, or supporting the recovery from*** a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment 185
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 7
Regulation (EU) 2023/2854
Article 15 a – paragraph 2

Text proposed by the Commission

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to *address* the public emergency, personal data may also be requested and, *where possible*, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Amendment

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to *respond to* the public emergency, personal data may also be requested and, *unless strictly necessary* made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Or. en

Amendment 186
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 7
Regulation (EU) 2023/2854
Article 15 a – paragraph 3

Text proposed by the Commission

3. *Where the data requested are necessary to mitigate or support the recovery from a public emergency, a requesting body pursuant to paragraph 1 acting on the basis of Union or national*

Amendment

deleted

law, may request specific non-personal data, the lack of which prevent it from mitigating or supporting the recovery from a public emergency. Such requests shall not be made to microenterprises and small enterprises.;

Or. en

Amendment 187

Victor Negrescu

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15 a – paragraph 3

Text proposed by the Commission

3. Where the data requested are necessary to mitigate or support the recovery from a public emergency, a requesting body pursuant to paragraph 1 acting on the basis of Union or national law, may request specific non-personal data, the lack of which prevent it from mitigating or supporting the recovery from a public emergency. Such requests shall not be made to microenterprises and small enterprises.;

Amendment

3. Where the data requested are necessary to mitigate or support the recovery from a public emergency, a requesting body pursuant to paragraph 1 acting on the basis of Union or national law, may request specific non-personal data, the lack of which prevent it from mitigating or supporting the recovery from a public emergency. Such requests shall not be made to microenterprises and small enterprises. *When addressing other SMEs, public sector bodies, the Commission, the European Central Bank and Union bodies shall take particular account of their limited administrative and technical capacity, and shall design requests and modalities of provision in a proportionate and SME-friendly manner.*

Or. en

Amendment 188

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 7 a (new)

Text proposed by the Commission

Amendment

7a. the following Article 15b is inserted:

Obligation to make data available for exceptional needs other than public emergencies

1. A public sector body, the Commission, the European Central Bank, or a Union body may request non-personal data from a data holder where the requested data are strictly necessary for the performance of a task carried out in the public interest and where the objective cannot reasonably be achieved by other means under equivalent conditions.

2. Requests under paragraph 1 shall be limited to clearly defined public-interest purposes laid down in Union or Member State law, including public health, environmental protection, market surveillance, consumer protection, fundamental rights protection, public-interest research, and the production of official statistics.

3. Requests under this Article shall be specific, necessary, proportionate, time-limited, and limited to the minimum data necessary for the stated purpose.

4. Data made available under this Article shall be subject to purpose limitation, data minimisation, security, deletion or return obligations, transparency, and independent oversight.

6. Each request and its legal basis, purpose, data categories, recipient, and duration shall be recorded in a public register, except where publication would seriously undermine the purpose of the request. In such cases, delayed publication shall be required.

Or. en

Amendment 189
Laurence Farreng

Proposal for a regulation
Article 1 – paragraph 1 – point 9
Regulation (EU) 2023/2854
Article 17

Text proposed by the Commission

Amendment

9. Article 17 is amended as follows: *deleted*

(a) paragraph 1 is amended as follows:

(i) the introductory wording is replaced by the following:

‘When requesting data pursuant to Article 15a, a public sector body, the Commission, the European Central Bank or a Union body shall;’

‘(b) demonstrate that the conditions to make a request under Article 15a are met;

(c) explain the purpose of the request, the intended use of the data requested, including, where applicable, by a third party in accordance with paragraph 4 of this Article, the duration of that use, and, where relevant, how the processing of personal data is to address the public emergency;;’

(i) point (c) is replaced by the following:

‘(c) be proportionate to the public emergency and duly justified, regarding the granularity and volume of the data requested and the frequency of access to the data requested;;’

(c) paragraphs 5 and 6 are deleted;

Or. en

Amendment 190
David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 9 – point b a (new)

Regulation (EU) 2023/2854

Article 17 – paragraph 4

Text proposed by the Commission

Amendment

(ba) paragraph 4 is replaced by the following:

4. Paragraph 3 of this Article does not preclude a public sector body, the Commission, the European Central Bank or a Union body to exchange data obtained pursuant to this Chapter with another public sector body or the Commission, the European Central Bank or a Union body in view of completing the tasks referred to in Article 15a, as specified in the request in accordance with paragraph 1, point (f), of this Article or to make the data available to a third party where it has delegated, by means of a publicly available agreement, technical inspections or other functions to that third party. The obligations on public sector bodies pursuant to Article 19, in particular safeguards to preserve the confidentiality of trade secrets, shall apply also to such third parties. Where a public sector body, the Commission, the European Central Bank or a Union body transmits or makes data available under this paragraph, it shall notify the data holder from whom the data was received without undue delay.

Or. en

Amendment 191

Laurence Farreng

Proposal for a regulation

Article 1 – paragraph 1 – point 10

Regulation (EU) 2023/2854

Article 18

Text proposed by the Commission

Amendment

10. *Article 18 is amended as follows:* *deleted*

(a) in paragraph 2, the introductory wording is replaced by the following:

‘2. Without prejudice to specific needs regarding the availability of data defined in Union or national law, a data holder may decline or seek the modification of a request to make data available under this Chapter without undue delay and, in any event, no later than five working days after the receipt of a request pursuant to Article 15a(2) and without undue delay and, in any event, no later than 30 working days after the receipt of a request pursuant to Article 15a(3), on any of the following grounds;’

Or. en

Amendment 192
Laurence Farreng

Proposal for a regulation
Article 1 – paragraph 1 – point 11
Regulation (EU) 2023/2854
Article 19

Text proposed by the Commission

Amendment

11. *Article 19 is amended as follows:* *deleted*

(a) in paragraph 1, the introductory wording is replaced by the following:

‘A public sector body, the Commission, the European Central Bank or a Union body receiving data pursuant to a request made under Article 15a shall;’

‘3. Disclosure of trade secrets to a public sector body, the Commission, the European Central Bank or a Union body shall be required only to the extent that it is strictly necessary to achieve the purpose of a request under Article 15a. In such a case, the data holder or, where they are not the same person, the trade secret holder shall identify the data which are

protected as trade secrets, including in the relevant metadata. The public sector body, the Commission, the European Central Bank or the Union body shall, prior to the disclosure of trade secrets, take all necessary and appropriate technical and organisational measures to preserve the confidentiality of the trade secrets, including, as appropriate, the use of model contractual terms, technical standards and the application of codes of conduct.;

Or. en

Amendment 193
Laurence Farreng

Proposal for a regulation
Article 1 – paragraph 1 – point 13 – point a
Regulation (EU) 2023/2854
Article 21 – paragraph 1 – heading

Text proposed by the Commission

Amendment

(a) the heading is replaced by the following: *deleted*

‘Sharing of data obtained in the context of a public emergency with research organisations or statistical bodies;’

Or. en

Amendment 194
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 13 – point b a (new)

Text proposed by the Commission

Amendment

(ba) A paragraph 6 is added, as follows:

(6) Outside of the emergency situations

envisaged in this Article, individuals and institutions engaged in scientific research shall enjoy reasonable access to data in order to pursue their missions.

Or. en

Amendment 195
Laurence Farreng

Proposal for a regulation
Article 1 – paragraph 1 – point 14
Regulation (EU) 2023/2854
Before Article 22

Text proposed by the Commission

Where a dispute arises concerning a request for data under Article **15a**, including its refusal, modification, the level of compensation, or the transmission or making available of data, the data holder, the public sector body, the Commission, the European Central Bank or the Union body may lodge a complaint with the competent authority, designated pursuant to Article 37, of the Member State where the data holder is established.;

Amendment

Where a dispute arises concerning a request for data under Article **15**, including its refusal, modification, the level of compensation, or the transmission or making available of data, the data holder, the public sector body, the Commission, the European Central Bank or the Union body may lodge a complaint with the competent authority, designated pursuant to Article 37, of the Member State where the data holder is established.;

Or. en

Amendment 196
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 15
Regulation (EU) 2023/2854
Article 31

Text proposed by the Commission

15. in Article 31, the following paragraphs 1a and 1b are inserted:
‘1a.

Amendment

deleted

The obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer, if the provision of such services is based on a contract concluded before or on 12 September 2025.

The provider of such data processing services shall not be required to renegotiate or amend a contract for the provision of those services before its expiry if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.

1b.

A provider of a data processing service may include provisions on proportionate early termination penalties in a contract of fixed duration on the provision of data processing services other than those referred to in Article 30(1).

Where the provider of data processing service is a small and medium-sized enterprise or a small mid-cap, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), if the provision of such services is based on a contract concluded before or on 12 September 2025.

Where the provider of a data processing service is a small and medium-sized enterprise or a small mid-cap, the provider shall not be required to renegotiate or amend a contract for the provision of a data processing service other than those referred to in Article 30(1) before its expiry 1 if that contract

was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.;

Or. en

Amendment 197
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 17
Regulation (EU) 2023/2854
Article 36

Text proposed by the Commission

Amendment

17. Article 36 is deleted.

deleted

Or. en

Amendment 198
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 a

Text proposed by the Commission

Amendment

(a) recognised data intermediation services providers and

(a) recognised data intermediation services providers ***authorised to provide data intermediation services in the Union*** and

Or. en

Amendment 199
Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 b – title

Text proposed by the Commission

Competent authorities for the registration of data intermediation services providers and data altruism organisations

Amendment

Competent authorities for the **voluntary** registration of data intermediation services providers and data altruism organisations

Or. en

Amendment 200

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c – title

Text proposed by the Commission

General requirements for registration of recognised data intermediation services providers

Amendment

General requirements for **voluntary** registration of recognised data intermediation services providers

Or. en

Amendment 201

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c – point b

Text proposed by the Commission

(b) the data they collect with respect to any activity of a natural or legal person for the purpose of the provision of the data intermediation service, including the date, time and geolocation data, duration of activity and connections to other natural or legal persons established by the

Amendment

deleted

person who uses the data intermediation service, are used only for the development of that data intermediation service;

Or. en

Amendment 202
Mario Mantovani

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 c – point b

Text proposed by the Commission

(b) the data they collect with respect to any activity of a natural or legal person for the purpose of the provision of the data intermediation service, including the date, time and geolocation data, duration of activity and connections to other natural or legal persons established by the person who uses the data intermediation service, are used only for the development of that data intermediation service;

Amendment

(b) the data they collect with respect to any activity of a natural or legal person for the purpose of the provision of the data intermediation service, including the date, time and geolocation data, duration of activity and connections to other natural or legal persons established by the person who uses the data intermediation service, are used only for the development of that data intermediation service ***and only in so far as such use adheres to the principle of user control referred to in Article 4(11), including, where applicable, the user's consent or explicit request. This provision shall not preclude manufacturers or other relevant economic operators from accessing such metadata for the purposes of fulfilling their legal requirements under Union law;***

Or. it

Justification

Authorising data intermediation service providers to use metadata for the benefit of their own development without providing suitable user controls would contravene the principle of control enshrined in Article 4(11). Only authorising data intermediation service providers to access metadata would undermine the level playing field. SMEs may also need to access metadata to comply with Union requirements such as the General Production Safety Regulation. Clarifying this would prevent legal fragmentation and ensure that SMEs continue to comply with Union legislation.

Amendment 203
David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c – paragraph 1 – point d – point iii

Text proposed by the Commission

(iii) the value-added services are offered through a functionally separate entity;

Amendment

(iii) the value-added services are offered through a functionally separate entity ***that is legally, organisationally and operationally separate from the data intermediation service provider;***

Or. en

Amendment 204
Laurence Farreng

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c – paragraph 1 – point d – point iii

Text proposed by the Commission

(iii) the value-added services are offered through a ***functionally*** separate entity;

Amendment

(iii) the value-added services are offered through a ***legally, organisationally and operationally*** separate entity ***from the data intermediation service provider;***

Or. en

Amendment 205
Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c – paragraph 1 – point d – point iii

Text proposed by the Commission

Amendment

(iii) the value-added services are offered through a functionally separate entity;

(iii) the value-added services are offered through a ***separate legal person***.
SMEs/SMCs may offer value-added services through a functionally separate entity;

Or. en

Justification

This amendment reverts to the original wording to preserve the independence of data intermediation services. In a highly concentrated cloud market, allowing providers to act as intermediaries may create conflicts of interest. The requirement for a separate legal entity ensures functional separation, transparency and effective oversight, thereby fostering trust and fair competition.

Amendment 206

Arash Saeidi

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c – paragraph 1 – point e a (new)

Text proposed by the Commission

Amendment

(ea) the data intermediation services provider takes necessary technical or organisational measures to ensure that storage of non-personal data can be done on the territory of the European Union upon explicit and motivated request of the data explicit request of the data holder or data subject;

Or. en

Amendment 207

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c

Text proposed by the Commission

Amendment

(ea) The data intermediation services provider ensures that the procedure for access to its service is fair, transparent and non-discriminatory for both data subjects and data holders, as well as for data users, including with regard to prices and terms of service.

Or. en

Amendment 208
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 c

Text proposed by the Commission

Amendment

(eb) The data intermediation service providers shall not use data made available through their services for advertising, profiling, ranking, price discrimination, training of AI systems or any purpose other than putting those data at the disposal of data users in accordance with the instructions of the data holder or data subject.

Or. en

Amendment 209
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 c

Text proposed by the Commission

Amendment

(ec) The data intermediation services provider takes the necessary technical, organisational measures to ensure an appropriate level of security for the storage, processing and transmission of non-personal data, including by maintaining a log record of the intermediation.

Or. en

Amendment 210

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c

Text proposed by the Commission

Amendment

(ed) The data intermediation services provider shall have procedures in place to prevent fraudulent or abusive practices in relation to parties seeking access through its data intermediation services.

Or. en

Amendment 211

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 c

Text proposed by the Commission

Amendment

(ee) The data intermediation services provider shall, in the event of its insolvency, ensure a reasonable continuity of the provision of its data

intermediation services and, where such data intermediation services ensure the storage of data, shall have mechanisms in place to allow data holders and data users to obtain access to, to transfer or to retrieve their data and, where such data intermediation services are provided between data subjects and data users, to allow data subjects to exercise their rights.

Or. en

Amendment 212
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 e

Text proposed by the Commission

Data intermediation services provider which meets the requirements set out in Article 32c **may** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

Data intermediation services provider which meets the requirements set out in Article 32c **shall** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment, **prior to the commencement of their services. Where the processing activities of the data intermediation service provider are likely to pose a high risk to the rights and freedoms of natural persons within the meaning of Article 35 of Regulation (EU) 2016/679, prior notification is mandatory, regardless of the intended designation.**

Registration by a digital service provider with the competent authority of one Member State shall automatically lead to its immediate inclusion in the public Union register. This single registration shall be valid and produce full legal

effects in all Member States, without any additional national procedures or requirements being imposed.

The Commission shall adopt implementing acts establishing harmonized application forms for the registration of data intermediation service providers and data altruism organizations throughout the Union. These forms shall specify, in particular, a description of the intended nature of the data intermediation or data altruism activities, including the types of data involved, the categories of personal data, and the planned value-added services, so as to provide the competent authorities with sufficient and reliable information to carry out their supervisory duties.

Or. en

Amendment 213
Laurence Farreng

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 e – paragraph 1 – subparagraph 1

Text proposed by the Commission

Data intermediation services provider which meets the requirements set out in Article 32c **may** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

Data intermediation services provider which meets the requirements set out in Article 32c **shall** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

Amendment 214

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 e

Text proposed by the Commission

Data altruism organisation which meets the requirements set out in Article 32d **may** submit an application for registration in the public Union register of recognised data altruism organisations to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

Data altruism organisation which meets the requirements set out in Article 32d **shall** submit an application for registration in the public Union register of recognised data altruism organisations to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

Amendment 215

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 e

Text proposed by the Commission

(3) **Competent authorities** shall **establish the necessary** application **forms**.

Amendment

(3) **To ensure consistency and coherence across the EU, the Commission shall, after consulting the EDPB, adopt implementing acts establishing a template application form for the registration of data intermediation services and recognised data altruism organisations, including inter alia a description of the intended processing and other activities, their nature and scope; type of data concerned and any intended value-added services related to the processing of the data.**

Or. en

Amendment 216
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 f

Text proposed by the Commission

Amendment

(4a) Recognised data altruism organisations shall publish an annual transparency report describing the categories of data collected, the objectives of general interest pursued, the categories of data users receiving access, any third-country transfers or access, the safeguards applied, and the number of withdrawals of consent or permission.

Or. en

Amendment 217
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 g a (new)

Text proposed by the Commission

Amendment

(ga) Mandatory complaint handling
A recognised data intermediation services provider or a recognised data altruism organisation shall set up an easily accessible system by which data subjects or data holders can lodge complaints for infringements on the requirements laid down in this Chapter. The recognised data intermediation services provider or a recognised data altruism organisation will have 7 days to confirm the receipt of this complaint and 21 days to provide a reasoned response to the data subjects or data holder that lodged the complaint.

Amendment 218
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 k – paragraph 3

Text proposed by the Commission

(3) By way of derogation of paragraph 1, where an exclusive right relates to the digitisation of cultural resources, the period of exclusivity shall ***in general*** not exceed 10 years. ***Where that period exceeds 10 years, its duration shall be in accordance with applicable Union and national law subject to review during the 11th year and, if applicable, every seven years thereafter.***

Amendment

(3) By way of derogation of paragraph 1, where an exclusive right relates to the digitisation of cultural resources, the period of exclusivity shall not exceed 10 years, ***and for enterprises with a designation as a gatekeeper under Regulation (EU) 2022/1925, 5 years.***

Or. en

Justification

While the proposal improves transparency by requiring digitisation agreements to be made publicly available, the absence of a clear time limit risks perpetuating long-term exclusive control over digitised Public Domain materials. A temporal cap is necessary to ensure periodic review and preserve broad access to Europe's cultural heritage.

Amendment 219
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 q – paragraph 6

Text proposed by the Commission

(6) Public sector bodies may set out higher charges for the re-use of data and documents by very large enterprises than the charges provided for in paragraphs 1, 4

Amendment

(6) Public sector bodies may set out higher charges for the re-use of data and documents by very large enterprises ***with a designation as a gatekeeper under***

and 5. Any such charges shall be proportionate and based on objective criteria, taking into account the economic power, or the ability of the entity to acquire data, ***including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925***. In addition to the elements listed in paragraph 1 of this Article, such charges may cover the cost of collection, production, reproduction dissemination and data storage and where applicable the cost of anonymisation or measures to protect the confidentiality of the data or documents, together with a reasonable return on investment.

Regulation (EU) 2022/1925 other than the charges provided for in paragraphs 1, 4 and 5. Any such charges shall be proportionate and based on objective criteria, taking into account the economic power, or the ability of the entity to acquire data. In addition to the elements listed in paragraph 1 of this Article, such charges may cover the cost of collection, production, reproduction dissemination and data storage and where applicable the cost of anonymisation or measures to protect the confidentiality of the data or documents, together with a reasonable return on investment. ***The European Commission shall prepare guidelines with the aim of promoting a harmonised system for charging such fees across Member States***

Or. en

Amendment 220
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 q – paragraph 6

Text proposed by the Commission

(6) Public sector bodies may set out higher charges for the re-use of data and documents by very large enterprises than the charges provided for in paragraphs 1, 4 and 5. Any such charges shall be proportionate and based on objective criteria, taking into account the economic power, or the ability of the entity to acquire data, including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925. In addition to the elements listed in paragraph 1 of this Article, such charges may cover the cost of collection, production, reproduction dissemination and data storage and where applicable the cost of anonymisation or measures to protect

Amendment

(6) ***Where they are able to charge for access and choose to do so***, public sector bodies may set out higher charges for the re-use of data and documents by very large enterprises than the charges provided for in paragraphs 1, 4 and 5. Any such charges shall be proportionate and based on objective criteria, taking into account the economic power, or the ability of the entity to acquire data, including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925. In addition to the elements listed in paragraph 1 of this Article, such charges may cover the cost of collection, production, reproduction dissemination and data storage and where

the confidentiality of the data or documents, together with a reasonable return on investment.

applicable the cost of anonymisation or measures to protect the confidentiality of the data or documents, together with a reasonable return on investment.

Or. en

Amendment 221
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 r – paragraph 2

Text proposed by the Commission

(2) When re-use is subject to conditions, those conditions shall not unnecessarily restrict possibilities for re-use and shall not be used to restrict competition.

Amendment

(2) When re-use is subject to conditions, those conditions shall not unnecessarily restrict possibilities for re-use and shall not be used to restrict competition, ***nor shall they undermine the principle of open data as freely reusable for any purpose, subject only to proportionate and justified limitations in line with paragraph 1.***

Or. en

Amendment 222
David Cormand

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 r – paragraph 3

Text proposed by the Commission

(3) In Member States where licences are used, public sector bodies shall ensure that the standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format

Amendment

(3) In Member States where licences are used, public sector bodies shall ensure that the standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format

and able to be processed electronically.

and able to be processed electronically,
***and that such licences are, as a default,
open licences enabling free and
unrestricted re-use, in particular for
public interest purposes.***

Or. en

Amendment 223

Emil Radev

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 r – paragraph 3

Text proposed by the Commission

(3) In Member States where licences are used, public sector bodies shall ensure that ***the*** standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format and able to be processed electronically.

Amendment

(3) In Member States where licences are used, ***Member States shall encourage the use of standard licenses for the re-use of public sector data or documents.*** Public sector bodies shall ensure that ***such*** standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format and able to be processed electronically.

Or. en

Amendment 224

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 r

Text proposed by the Commission

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises. Such conditions shall be proportionate and

Amendment

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises. Such conditions shall be proportionate and

should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data, including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925.

should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data, including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925, ***and may include requirements to contribute financially or otherwise to the sustainability, maintenance, and enrichment of the underlying data infrastructure, provided that such conditions do not restrict or negatively affect re-use by research organisations, non-commercial users, or open knowledge projects.***

Or. en

Amendment 225
Emil Radev

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 r – paragraph 4

Text proposed by the Commission

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises. Such conditions shall be proportionate and should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data, ***including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925.***

Amendment

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises ***with a designation as a gatekeeper under Regulation (EU) 2022/1925.*** Such conditions shall be proportionate and should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data.

Or. en

Amendment 226
David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 t

Text proposed by the Commission

(1) Member States shall support the availability of research data by adopting national policies and relevant actions aiming at making publicly funded research data openly available ('open access policies'), following the principle of 'open by default' and compatible with the FAIR principles. In that context, concerns relating to intellectual property rights, personal data protection and confidentiality, security and legitimate commercial interests, shall be taken into account in accordance with the principle of 'as open as possible, as closed as necessary'. Those open access policies shall be addressed to research performing organisations and research funding organisations.

Amendment

(1) Member States shall support the availability of research data by adopting national policies and relevant actions aiming at making publicly funded research data openly available ('open access policies'), following the principle of 'open by default' and compatible with the FAIR principles. In that context, ***and bearing in mind the Union's broader commitment to open science***, concerns relating to intellectual property rights, personal data protection and confidentiality, security and legitimate commercial interests, shall be taken into account in accordance with the principle of 'as open as possible, as closed as necessary'. Those open access policies shall be addressed to research performing organisations and research funding organisations.

Or. en

Amendment 227

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 t

Text proposed by the Commission

(1) Member States shall support the availability of research data by adopting national policies and relevant actions aiming at making publicly funded research data openly available ('open access policies'), following the principle of 'open by default' and compatible with the FAIR principles. In that context, concerns

Amendment

(1) Member States shall support the availability of research data by adopting national policies and relevant actions aiming at making publicly funded research data openly available ('open access policies'), following the principle of 'open by default' and compatible with the FAIR principles. In that context, ***and bearing in***

relating to intellectual property rights, personal data protection and confidentiality, security and legitimate commercial interests, shall be taken into account in accordance with the principle of ‘as open as possible, as closed as necessary’. Those open access policies shall be addressed to research performing organisations and research funding organisations.

mind the Union’s broader commitment to open science, concerns relating to intellectual property rights, personal data protection and confidentiality, security and legitimate commercial interests, shall be taken into account in accordance with the principle of ‘as open as possible, as closed as necessary’. Those open access policies shall be addressed to research performing organisations and research funding organisations.

Or. en

Amendment 228

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 a – paragraph 5

Text proposed by the Commission

(5) The Commission shall *establish a European single access point offering a searchable electronic register of data or documents available in the national single information points and further information on how to request data or documents via those national single information points.*

Amendment

(5) The Commission shall *ensure that*

a. Member States remain responsible for establishing and operating a single integrated national reporting portal for all statutory reporting obligations, including at a minimum notifications under the CRA, NIS2, CER, DORA, eIDAS and the GDPR.

b. these national reporting portals are designed to be interoperable on the basis of uniform functional and technical requirements to be set by ENISA;

c. national reporting portals provide for interoperable, automated and secure transmission of relevant notifications to

competent authorities in other Member States and/or to ENISA, where this is necessary under Union law or national law;

d. ENISA performs a supporting and coordinating role in promoting interoperability, standardisation and quality assurance, without becoming responsible for central storage or processing of all incident notifications at EU level.

Or. en

Amendment 229

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 20

Regulation (EU) 2023/2854

Article 40

Text proposed by the Commission

Amendment

6. This Article shall not apply to Chapter VIIc.

deleted

Or. en

Amendment 230

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 22

Regulation (EU) 2023/2854

Article 41 a

Text proposed by the Commission

Amendment

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection

Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

The European Data Innovation Board shall include structured participation from civil society organisations, consumer organisations, academia, independent technical experts, and representatives of SMEs and micro-enterprises. Such participation shall ensure balanced representation and shall not affect the independence of competent authorities.

Or. en

Amendment 231

David Cormand

Proposal for a regulation

Article 1 – paragraph 1 – point 23

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point c

Text proposed by the Commission

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information;

Amendment

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information, ***in particular by establishing methods for the efficient exchange of information relating to the enforcement of the rights and obligations under Chapters II, III and V in cross-border cases, including coordination with regard to the setting of penalties ;***

Or. en

Amendment 232
Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 1

Regulation (EU) 2016/679

Article 3 – paragraph 1 – point 1 – introductory part

Text proposed by the Commission

Amendment

1. Article 4 is amended as follows: **deleted**

(a) in point 1, the following sentences are added:

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

‘(32) ‘terminal equipment’ means terminal equipment as set out in Article 1(1) of Directive 2008/63/EC;

(33) for ‘electronic communications networks’ the definition of Article 2(1) of Directive (EU) 2018/1972 shall apply;

(34) ‘web browser’ means web browser as defined in Article 2(11) of Regulation (EU) 2022/1925;

(35) ‘media service’ means a media service as defined in Article 2(1) of Regulation (EU) 2024/1083;

(36) ‘media service provider’ means a media service provider as defined in Article 2(2) of Regulation (EU) 2024/1083;’

(37) ‘online interface’ means an online

interface as defined in Article 3(m) of Regulation (EU) 2022/2065.'

(38) "scientific research" means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.'

Or. en

Amendment 233

Daniel Buda

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Regulation (EU) 2016/679 (GDPR)

Article 4 – paragraph 1 – point a

Text proposed by the Commission

Amendment

'Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.'

deleted

Or. ro

Justification

There is a risk that the Commission's text will narrow the scope of the concept of "personal data" by linking it to a specific entity's actual ability to identify the person, with a direct impact on the scope of Regulation (EU) 2016/679 and the fundamental right to data protection. Simplification and competitiveness are necessary, but they cannot be achieved by diminishing the protection of fundamental rights or by introducing legal uncertainty into the application of the GDPR.

Amendment 234 **Mario Mantovani**

Proposal for a regulation
Article 3 – paragraph 1 – point 1 – point a
Regulation (EU) 2016/679
Article 4 – paragraph 1 – point a

Text proposed by the Commission

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

Amendment

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates. ***If, for the purposes of this paragraph, information is not classified as personal data in respect of a particular data subject, that data subject shall not, for the purposes of processing such information, have to comply with the administrative or contractual requirements laid down for the sole purpose of processing personal data under Union data protection law.***’

Or. it

Justification

The clarification that information should only be classified as personal data if the individual can be identified by reasonably available means primarily concerns pseudonymised data. However, this creates uncertainty for data controllers as regards their administrative requirements (e.g. agreements between the data controller and processor, safeguards for data transfers to third countries). For the sake of legal certainty, it is important to clarify that data subjects whose data is not personal in nature should not be subject to requirements relating to the processing of that data.

Amendment 235

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Regulation (EU) 2016/679

Article 4 – paragraph 1 – point a

Text proposed by the Commission

Information relating to a natural person is not necessarily personal data for ***every other*** person or entity, ***merely because another entity can identify that natural person***. Information shall not be personal for a given entity where that entity ***cannot*** identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Amendment

Information relating to a natural person is not necessarily personal data for ***a*** person or entity. Information shall not be personal for a given entity where that entity ***is not reasonably able to*** identify the natural person to whom the information relates, taking into account the means reasonably likely to be used ***in practice*** by that entity, ***considering all objective factors, such as the costs, technological resources and the amount of time required for identification and the safeguards applied to the processing***. Such information does not become personal for that entity merely because ***the entity which sent the data to that entity or*** a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Or. en

Amendment 236

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Regulation (EU) 2016/679

Article 4 – paragraph 1 – point a

Text proposed by the Commission

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Amendment

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity, ***including objective factors such as technological resources, safeguards applied during processing, and the time necessary to complete the identification process***. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Or. en

Amendment 237

Daniel Buda

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation 2016/679

Article 4 – point 38

Text proposed by the Commission

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth

Amendment

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth

of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.'

of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest, ***in full compliance with the provisions of this Regulation with regard to the protection of personal data, including through the implementation of appropriate technical and organisational measures, such as pseudonymisation, where possible.*** No provision of this definition may be construed as limiting the rights of data subjects provided for in this Regulation.

Or. ro

Amendment 238

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 3 – paragraph 1 – point 2 a (new)

Regulation (EU) 2016/679

Article 5 – paragraph 3

Text proposed by the Commission

Amendment

2a. *After Article 5(3), the following subparagraph is added:*

‘This paragraph shall not apply if the subscriber or user is a natural person, and the information stored or accessed constitutes the processing of personal data.’

Or. en

Amendment 239

Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a

Regulation (EU) 2016/679

Article 3 – paragraph 3 – point (k)

Text proposed by the Commission

Amendment

(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5. *deleted*

Or. en

Amendment 240

Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a

Regulation (EU) 2016/679

Article 3 – paragraph 3 – point (l)

Text proposed by the Commission

Amendment

(l) processing of biometric data is necessary for the purpose of confirming the identity of a data subject (verification), where the biometric data or the means needed for the verification is under the sole control of the data subject. *deleted*

Or. en

Amendment 241

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a a (new)

Regulation (EU) 2016/679

Article 9 – paragraph 1 (new)

Text proposed by the Commission

Amendment

(aa) A new Article 9(1) is added:
Processing of personal data for the purpose of directly revealing a specific data subject's racial or ethnic origin, political opinions, religious or

philosophical beliefs, or trade union membership, his or her health status or sex life or sexual orientation and the processing of genetic data or of biometric data for the purpose of uniquely identifying a natural person shall be prohibited.

Or. en

Amendment 242

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point b

Regulation (EU) 2016/679

Article 9 – paragraph 5 (new)

Text proposed by the Commission

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.

Amendment

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the collection and otherwise processing of special categories of personal data, ***unless such processing is strictly necessary for bias detection and correction, while adequate safeguards are in place to prevent any use of the data for other purposes up to the point when the data are irreversibly anonymised or erased.*** Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.

Or. en

Amendment 243
Arash Saeidi

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 3 – paragraph 5

Text proposed by the Commission

Amendment

5. Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or also, for requests under Article 15 because the data subject abuses the rights conferred by this regulation for purposes other than the protection of their data, the controller may either:

(a) charge a reasonable fee taking into account the administrative costs of providing the information or communication or taking the action requested; or

(b) refuse to act on the request.

The controller shall bear the burden of demonstrating that the request is manifestly unfounded or that there are reasonable grounds to believe that it is excessive.

deleted

Or. en

Amendment 244
Mario Mantovani

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 12 – paragraph 5

Text proposed by the Commission

Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or ***also, for requests under Article 15 because the data subject abuses the rights conferred by this regulation*** for purposes other than the protection of ***their*** data, the controller may either:

Amendment

Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or ***because there are reasonable grounds to believe that the request has been submitted*** for purposes other than the protection of ***that subject's personal*** data, the controller may either:

Or. it

Amendment 245
Mario Mantovani

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 12 – paragraph 5 – point b

Text proposed by the Commission

The controller ***shall bear the burden of demonstrating*** that the request is ***manifestly unfounded or that there are reasonable grounds to believe that it is excessive.***

Amendment

Data controllers, notably SMEs, may also refuse a request if the data processing poses a limited risk to the rights and freedoms of the data subject and if the request is not commensurate with the risks that such data processing entails. If the controller refuses to comply with a request on the grounds referred to in this Article, the data subject must demonstrate that the request is legitimate, where applicable.

Or. it

Justification

SMEs are increasingly having to deal with vexatious or disproportionate requests, which entail considerable administrative costs while availing nothing for data protection. Beyond reimbursing those costs and rejecting manifestly unfounded requests, further safeguards are

needed to refuse requests that are disproportionate and pose a minimal risk and to ensure that the burden of proof does not solely reside with the controller. Requiring the data subject to demonstrate that their request is legitimate would protect SMEs from vexatious requests while upholding the guarantees provided by the Regulation.

Amendment 246

Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 5

Regulation (EU) 2016/679

Article 3 – paragraph 5

Text proposed by the Commission

Amendment

4. Paragraphs 1, 2 and 3 shall not *deleted* apply where the personal data have been collected in the context of a clear and circumscribed relationship between data subjects and a controller exercising an activity that is not data-intensive and there are reasonable grounds to assume that the data subject already has the information referred to in points (a) and (c) of paragraph 1, unless the controller transmits the data to other recipients or categories of recipients, transfers the data to a third country, carries out automated decision-making, including profiling, referred to in Article 22(1), or the processing is likely to result in a high risk to the rights and freedoms of data subjects within the meaning of Article 35.

Or. en

Amendment 247

Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 6

Regulation (EU) 2016/679

Article 3 – paragraph 1 – point 6 – introductory part

6. *In Article 13, paragraph 5 is added:* *deleted*

‘5. When the processing takes place for scientific research purposes and the provision of information referred to under paragraphs 1, 2 and 3 proves impossible or would involve a disproportionate effort subject to the conditions and safeguards referred to in Article 89(1) or in so far as the obligation referred to in paragraph 1 of this Article is likely to render impossible or seriously impair the achievement of the objectives of that processing, the controller does not need to provide the information referred to under paragraphs 1, 2 and 3. In such cases the controller shall take appropriate measures to protect the data subject's rights and freedoms and legitimate interests, including making the information publicly available.’

Or. en

Amendment 248

Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 7

Regulation (EU) 2016/679

Article 3 – paragraph 7

7. *In Article 22, paragraphs 1 and 2 are replaced by the following:* *deleted*

‘1. A decision which produces legal effects for a data subject or similarly significantly affects him or her may be based solely on automated processing, including profiling, only where that decision:

(a) is necessary for entering into, or performance of, a contract between the

data subject and a data controller regardless of whether the decision could be taken otherwise than by solely automated means;

(b) is authorised by Union or Member State law to which the controller is subject and which also lays down suitable measures to safeguard the data subject's rights and freedoms and legitimate interests; or

(c) is based on the data subject's explicit consent.'

Or. en

Amendment 249

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 7

Regulation (EU) 2016/679

Article 22

Text proposed by the Commission

1. A decision which produces legal effects for a data subject or similarly significantly affects him or her may be based solely on automated processing, including profiling, only where that decision:

Amendment

1. A decision which produces legal effects for a data subject, *in particular determine a person's legal status or contractual rights*, or similarly significantly affects him or her, may be based solely on automated processing, including profiling, only where that decision:

Or. en

Amendment 250

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 7 a (new)

Text proposed by the Commission

Amendment

7a. In Article 26, paragraph 1 is replaced by the following:

'1. Where two or more controllers jointly determine the purposes and means of processing, they shall be joint controllers. Entities shall be regarded as joint controllers only when they actively participate in, and exert actual and direct influence over, the determination of both the purposes and the means of the specific processing operation. They shall in a transparent manner determine their respective responsibilities for compliance with the obligations under this Regulation, in particular as regards the exercising of the rights of the data subject and their respective duties to provide the information referred to in Articles 13 and 14, by means of an arrangement between them unless, and in so far as, the respective responsibilities of the controllers are determined by Union or Member State law to which the controllers are subject. The arrangement may designate a contact point for data subjects.'

Or. en

Amendment 251

Daniel Buda

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point a

Regulation (EU) 2016/679 (GDPR)

Article 33 – paragraph 1

Text proposed by the Commission

(1) In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach via the

Amendment

(1) In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach via the

single-entry point established pursuant to Article 23a of Directive (EU) 2022/2555 to the supervisory authority competent in accordance with Article 55 and Article 56. Where the notification to the supervisory authority is not made within 96 hours, it shall be accompanied by reasons for the delay.'

electronic channel made available by the competent supervisory authority or, if the competent Member State has so decided, via a national contact point or an interface interoperable with the framework provided for in Article 23a of Directive (EU) 2022/2555 to the supervisory authority competent in accordance with Article 55 and Article 56. Where the notification to the supervisory authority is not made within 96 hours, it shall be accompanied by reasons for the delay.'

Or. ro

Amendment 252

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point a

Regulation (EU) 2016/679

Article 3 – paragraph 1 – point 8 – point a

Text proposed by the Commission

1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach via the ***single-entry point established pursuant to Article 23a of Directive (EU) 2022/2555*** to the supervisory authority competent in accordance with Article 55 and Article 56. Where the notification to the supervisory authority is not made within 96 hours, it shall be accompanied by reasons for the delay.

Amendment

1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach via the ***single integrated national reporting portal*** to the supervisory authority competent in accordance with Article 55 and Article 56. Where the notification to the supervisory authority is not made within 96 hours, it shall be accompanied by reasons for the delay.

Or. en

Amendment 253

Daniel Buda

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point b

2016/679 (GDPR)

Article 33 – paragraph 1 a

Text proposed by the Commission

‘1a. Until the establishment *of the single-entry point pursuant to* Article 23a of Directive (EU) 2022/2555, controllers shall continue to notify personal data breaches directly to the competent supervisory authority in accordance with Article 55 and Article 56.’

Amendment

‘1a. Until the establishment *and testing of the interoperable framework provided for in* Article 23a of Directive (EU) 2022/2555 *and until the applicable channel is designated by the competent Member State*, controllers shall continue to notify personal data breaches directly to the competent supervisory authority in accordance with Article 55 and Article 56.’

Or. ro

Amendment 254

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point b

Regulation (EU) 2016/679

Article 3 – paragraph 1 – point 8 – point b

Text proposed by the Commission

1a. *Until the establishment of the single-entry point pursuant to Article 23a of Directive (EU) 2022/2555*, controllers shall continue to notify personal data breaches directly to the competent supervisory authority in accordance with Article 55 and Article 56.

Amendment

1a. controllers shall continue to notify personal data breaches directly to the competent supervisory authority in accordance with Article 55 and Article 56.

Or. en

Amendment 255

Mario Mantovani

Proposal for a regulation

Article 3 – paragraph 1 – point 8 a (new)
Regulation (EU) 2016/679
Article 34 – paragraph 1 a (new)

Text proposed by the Commission

Amendment

8a. In Article 34, paragraph 1a is added:

‘The European Data Protection Board shall draw up a common, comprehensive list of the circumstances in which a breach is deemed to be high risk.’

Or. it

Justification

If simplification is to be effective, legal certainty is a must.

Amendment 256
Daniel Buda

Proposal for a regulation
Article 3 – paragraph 1 – point 10
Regulation (EU) 2016/679 (GDPR)
Article 41 a

Text proposed by the Commission

Amendment

10. The following article is added: **deleted**

‘Article 41a

(1) The Commission may adopt implementing acts to specify means and criteria to determine whether data resulting from pseudonymisation no longer constitutes personal data for certain entities.

(2) For the purposes of paragraph 1 the Commission shall:

(a) assess the state of the art of available techniques;

(b) develop criteria and or categories for controllers and recipients to assess the risk of re-identification in relation to

typical recipients of data.

(3) The implementation of the means and criteria outlined in an implementing act may be used as an element to demonstrate that data cannot lead to reidentification of the data subjects.

(4) The Commission shall closely involve the EDPB in the preparations of the implementing acts. The EPDB shall issue an opinion on the draft implementing acts within a deadline of 8 weeks as of the receipt of the draft from the Commission.

(5) The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).'

Or. ro

Justification

Pseudonymisation is not, in and of itself, equivalent to anonymisation. A solution involving implementing acts would take a matter of principle – the scope of the GDPR's application – out of the realm of the co-legislator and judicial interpretation and turn it into a technical procedure.

Amendment 257

Arash Saeidi

Proposal for a regulation

Article 3 – paragraph 1 – point 10

Regulation (EU) 2016/679

Article 3 – paragraph 1 – point 10 – introductory part

Text proposed by the Commission

Amendment

10. The following article is added: **deleted**

‘Article 41a

(1) The Commission may adopt implementing acts to specify means and criteria to determine whether data resulting from pseudonymisation no longer constitutes personal data for certain entities.

(2) For the purpose of paragraph 1 the Commission shall:

(a) assess the state of the art of available techniques;

(b) develop criteria and or categories for controllers and recipients to assess the risk of re-identification in relation to typical recipients of data.

(3) The implementation of the means and criteria outlined in an implementing act may be used as an element to demonstrate that data cannot lead to reidentification of the data subjects.

(4) The Commission shall closely involve the EDPB in the preparations of the implementing acts. The EPDB shall issue an opinion on the draft implementing acts within a deadline of 8 weeks as of the receipt of the draft from the Commission.

(5) The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).'

Or. en

Amendment 258

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a – paragraph 3

Text proposed by the Commission

Amendment

(da) ensuring security-related operations, including risk assessment for security purposes, fraud prevention, and user authentication;

Or. en

Amendment 259

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a – paragraph 3

Text proposed by the Commission

Amendment

(db) maintaining cross-session service continuity requested by the data subject;

Or. en

Amendment 260

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a – paragraph 3

Text proposed by the Commission

Amendment

(dc) retaining user-selected configuration or preference data.

Or. en

Amendment 261

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

after Article 88

Text proposed by the Commission

Amendment

Article 88b

deleted

Or. en

Amendment 262
Arash Saeidi

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 3 – paragraph 1 – point 15

Text proposed by the Commission

Amendment

Article 88c

deleted

Or. en

Amendment 263
Arash Saeidi

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 3 – paragraph 1 – point 15

Text proposed by the Commission

Amendment

**Processing in the context of the
development and operation of AI**

deleted

Or. en

Amendment 264
Arash Saeidi

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 3 – paragraph 15

Text proposed by the Commission

Amendment

**Where the processing of personal data is
necessary for the interests of the
controller in the context of the
development and operation of an AI
system as defined in Article 3, point (1), of
Regulation (EU) 2024/1689 or an AI**

deleted

model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, where appropriate, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Or. en

Amendment 265
Arash Saeidi

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 3 – paragraph 1 – point 15

Text proposed by the Commission

Amendment

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with an unconditional right to object to the processing of their personal data.

deleted

Or. en

Amendment 266
Daniel Buda

Proposal for a regulation

Article 4 – paragraph 1 – point 1 – point a
Regulation (EU) 2018/1725
Article 3 – point 1 – point a

Text proposed by the Commission

Amendment

(a) in point 1, the following sentences are added: **deleted**

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

Or. ro

Justification

Amendamentul menține coerența dintre RGPD și Regulamentul (UE) 2018/1725 fără a prelua o restrângere contestată a noțiunii de date cu caracter personal. Dacă modificarea art. 4 pct. 1 din RGPD este eliminată, modificarea identică propusă pentru art. 3 pct. 1 din Regulamentul (UE) 2018/1725 trebuie eliminată în mod corespunzător. Soluția evită afectarea standardului unitar de protecție a datelor pentru persoane fizice atât în raport cu operatorii privați, cât și în raport cu instituțiile, organele, oficiile și agențiile Uniunii. Din perspectiva dreptului UE, aceasta păstrează încrederea în statul de drept și în protecția efectivă a persoanei.

Amendment 267
Daniel Buda

Proposal for a regulation
Article 4 – paragraph 1 – point 10
Regulation (EU) 2018/1725
Article 45 a

Text proposed by the Commission

Amendment

The common criteria adopted by the Commission and referred to in article 41a of the Regulation (EU) 2016/679 should apply to the processing of personal data under this Regulation.' *deleted*

Or. ro

Justification

The amendment is a direct consequence of the removal of the Article 41a proposed for the GDPR. If the Commission's authority to adopt common criteria for pseudonymisation through implementing acts is not maintained, the automatic application of these criteria under Regulation (EU) 2018/1725 cannot be maintained either. The solution prevents the same legal vulnerability from extending to processing carried out by Union institutions, bodies, offices and agencies.

Amendment 268
Ton Diepeveen, Pascale Piera

Proposal for a regulation
Article 6
Directive 2002/58/EC
Article 6

Text proposed by the Commission

Amendment

[...] *deleted*

Or. en

Amendment 269
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 1 – introductory part
Directive (EU) 2022/2555
Article 6 – point 1

Text proposed by the Commission

Amendment

1. The following Article 23a is added:

1. The following Article 23a is added:
Interoperable European framework for reporting incidents

(1) Member States may establish or maintain national contact points, national reporting interfaces or other national solutions to fulfil obligations to report incidents and related events under this Directive and other Union legal acts which make provision for reporting through an interoperable mechanism.

(2) ENISA shall develop and maintain, for the purpose of technical support, an interoperable European framework for reporting incidents. This framework may include a technical interface at Union level that can be used by entities only where the competent Member State or relevant competent authority has decided that it shall be used or shall be interoperable with the national solution. Without prejudice to Article 16 of Regulation (EU) 2024/2847, ENISA may ensure that this technical interface builds on the single reporting platform established under that Regulation.

(3) The use of this interoperable European framework is without prejudice to the powers of Member States, CSIRT teams and competent authorities under this Directive and other applicable Union legal acts. The framework does not replace existing national solutions and does not require Member States to abandon national reporting interfaces in use on the date when this Regulation enters into force.

(4) ENISA shall take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the interoperable European framework and the information submitted or disseminated via it. Information shall be stored and processed in accordance with applicable Union legal acts and the competent Member State's decision regarding the reporting channel. Unless explicitly provided for in the applicable Union legal acts, ENISA shall not have access to the

content of notifications.

(5) ENISA shall develop the technical, operational and organisational specifications in cooperation with the Commission, the CSIRTs network and the competent authorities under the relevant Union legal acts. Specifications that affect national interfaces shall apply only to technical solutions approved by the Member States concerned. The specifications shall ensure that:

(a) a common reporting template and harmonised data fields exist, to the extent necessary to reduce the administrative burden on entities;

(b) interoperability with national contact points and with the national interfaces designated by Member States is guaranteed;

(c) the rules on the jurisdiction and competence of authorities under this Directive and other applicable Union legal acts are complied with;

(d) entities may report common information only once, and it shall be passed on to the relevant competent authorities, without extending ENISA's powers;

(e) the unique features of sector-specific incident reporting requirements are taken into account;

(f) entities can retrieve and supplement information that they have previously submitted, insofar as the applicable law and the technical channel used allow.

(6) Within [18] months from the entry into force of this Regulation, ENISA shall pilot the interoperable European framework for each included Union legal act, including testing that takes into account the specificities and requirements for the notifications set out by each Union legal act, and after consulting the Commission, the CSIRT network and the relevant competent authorities.

(7) The Commission shall, in cooperation with ENISA and after consulting the CSIRT network and the relevant competent authorities, assess the proper functioning, reliability, integrity, interoperability and confidentiality of the interoperable European framework. The Commission shall publish a notice in the Official Journal of the European Union only after confirming that the use of the framework does not affect the powers of national authorities and does not require Member States to replace existing national solutions.

(8) Where the assessment provided for in paragraph (7) finds deficiencies in terms of proper functioning, reliability, integrity, interoperability or confidentiality, ENISA shall take, in cooperation with the Commission, the CSIRT network and the relevant competent authorities, the necessary corrective measures and inform the Commission and the Member States of the results.

Or. ro

Justification

The amended text retains European standardisation – a single template, common fields, routing to authorities, interoperability – but turns the solution into an interoperable European framework with real flexibility for Member States. The role of the Commission and ENISA becomes one of facilitation and acceleration, not replacement of national systems. From a European perspective, the amendment combines subsidiarity, legal certainty, and effective simplification for private entities.

Amendment 270
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 1
Directive (EU) 2022/2555
Article 23 a

Text proposed by the Commission

Amendment

Article 23a

deleted

Or. ro

Amendment 271

Daniel Buda

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive 2022/2555

Article 23 a

Text proposed by the Commission

Amendment

Single-entry point for incident reporting

deleted

Or. ro

Amendment 272

Daniel Buda

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a

Text proposed by the Commission

Amendment

(1) ENISA shall develop and maintain a single-entry point to support the obligation to report incidents and related events under the Union legal acts where those Union legal acts provide so ('single-entry point'). Without prejudice to Article 16 of Regulation (EU) 2024/2847 of the European Parliament and of the Council, ENISA may ensure that the single-entry point builds on the single reporting platform established under that Regulation.

deleted

Or. ro

Amendment 273
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 1
Directive (EU) 2022/2555
Article 23 a

Text proposed by the Commission

Amendment

(2) *ENISA shall take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via the single-entry point. ENISA shall take into account the sensitivity of information submitted or disseminated pursuant to the Union legal acts referred to in paragraph (1) and ensure that competent authorities under those Union legal acts have access to and process the information as required under those Union legal acts.* **deleted**

Or. ro

Amendment 274
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 1
Directive (EU) 2022/2555
Article 23 a

Text proposed by the Commission

Amendment

(3) *ENISA shall provide and implement the specifications on the technical, operational and organisational measures regarding the establishment, maintenance and secure operation of the single-entry point. ENISA shall develop the specifications in cooperation with the Commission, the CSIRTs network and the competent authorities under the Union legal acts referred to in paragraph (1).* **deleted**

The specifications shall ensure that:

(a) the necessary capability for interoperability with regard to other relevant reporting obligations referred to in paragraph (1) is ensured;

(b) technical arrangements for the relevant entities and authorities under the Union legal acts referred to in paragraph (1) to access, submit , retrieve, transmit or otherwise process information from the single-entry point, are in place and, provide technical protocols and tools that allow the entities and authorities to further process the receive information within their systems;

(c) the specificities of the incident reporting requirements set out under the Union legal acts referred to in paragraph (1) are duly taken into account;

(d) where relevant, the single-entry point is interoperable and compatible with European Business Wallets referred to in [Proposal for a Regulation: Insert title of the proposal] and that the European Business Wallets can be used at least to identify and authenticate entities using the single-entry point;

(e) entities using the single-entry point can retrieve and supplement information that they have previously submitted via the single-entry point;

(f) a single notification of information submitted by an entity via the single-entry point can be used to fulfil reporting obligations as set out under any of the other Union legal acts which provide for incident reporting to the single-entry point.

Or. ro

Amendment 275

Tobiasz Bocheński, Kosma Złotowski

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Regulation (EU) 2016/679

Article 23 a

Text proposed by the Commission

(b) technical arrangements for the relevant entities and authorities under the Union legal acts referred to in paragraph (1) to access, submit , retrieve, transmit or otherwise process information from the single-entry point, are in place and, provide technical protocols and tools that allow the entities and authorities to further process the receive information within their systems;

Amendment

(b) technical arrangements for the relevant entities and authorities under the Union legal acts referred to in paragraph (1) to access, submit , retrieve, transmit or otherwise process information from the single-entry point, are in place and, provide technical protocols and tools that allow the entities and authorities to further process the receive information within their systems, ***with regard that submitted notification is forwarded to all relevant authorities in a legally effective manner;***

Or. en

Amendment 276

Daniel Buda

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a

Text proposed by the Commission

(4) Unless provided for in the Union legal acts referred to in paragraph (1) of this, ENISA shall not have access to the notifications submitted through the single-entry point.

Amendment

deleted

Or. ro

Amendment 277

Daniel Buda

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Text proposed by the Commission

Amendment

(5) Within [18] months from the entry into force of this Regulation, ENISA shall pilot the functioning of the single-entry point for each added Union legal act, including testing that takes into account the specificities and requirements for the notifications set out by each respective Union legal act, and after consulting the Commission and the relevant competent authorities under the respective Union legal acts. ENISA shall enable the notification of incidents under each Union legal act referred to in paragraph (1) only after piloting the functioning and after the Commission published a notice pursuant to paragraph 6. *deleted*

Or. ro

Amendment 278
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 1
Directive (EU) 2022/2555
Article 23 a

Text proposed by the Commission

Amendment

(6) The Commission shall, in cooperation with ENISA, assess the proper functioning, reliability, integrity and confidentiality of the single-entry point. When the Commission, after consultation of the CSIRTs network and the competent authorities under the Union legal acts referred to in paragraph 1, finds that the single-entry point ensures the proper functioning, reliability, integrity and confidentiality, it shall publish a notice to that effect in the Official Journal of the European Union. *deleted*

Amendment 279
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 1
Directive (EU) 2022/2555
Article 23 a

Text proposed by the Commission

Amendment

(7) *Where the Commission finds in its assessment that the single-entry point does not ensure the proper functioning, reliability, integrity or confidentiality, ENISA shall take, in cooperation with the Commission and without undue delay, all necessary corrective measures to ensure the proper functioning, reliability, integrity or confidentiality without delay and inform the Commission of the results. Thereafter, the Commission shall reassess the proper functioning, reliability, integrity or confidentiality of the single-entry point and shall publish a notice in accordance with paragraph 6.'* *deleted*

Amendment 280
Victor Negrescu

Proposal for a regulation
Article 6 – paragraph 1 – point 2 – point a
Regulation (EU) 2023/2854
Article 23

Text proposed by the Commission

Amendment

Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article

Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article

of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) via the single-entry point established pursuant to Article 23a.

of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) via the single-entry point established pursuant to Article 23a.

Member States shall ensure that guidance and support on incident reporting, including standard templates and explanatory material, are made easily accessible, in particular for SMEs that qualify as important entities, to strengthen their cybersecurity posture and facilitate compliance.

Or. en

Amendment 281

Daniel Buda

Proposal for a regulation

Article 6 – paragraph 1 – point 2 – point a

Directive (EU) 2022/2555

Article 23 – paragraph 1 – point a

Text proposed by the Commission

‘Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) via ***the single-entry point*** established pursuant to Article 23a.’

Amendment

‘Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) via ***the reporting channel designated by the competent Member State, including through a national contact point, through a national interface or, where the competent Member State has so decided, through the interoperable European framework*** established pursuant to Article 23a.’

Or. ro

Amendment 282
Ton Diepeveen, Pascale Piera

Proposal for a regulation
Article 6 – paragraph 1 – point 2 – point a
Directive 2002/58/EC
Article 23 – paragraph 1

Text proposed by the Commission

Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) ***via the single-entry point established pursuant to Article 23a.***

Amendment

Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident).

Or. en

Amendment 283
Daniel Buda

Proposal for a regulation
Article 6 – paragraph 1 – point 3
Directive (EU) 2022/2555
Article 30

Text proposed by the Commission

‘1. Member States shall ensure that, in addition to the notification obligation provided for in Article 23, notifications can be submitted to the CSIRTs or, where applicable, the competent authorities, on a voluntary basis via the ***single-entry point*** established pursuant to Article 23a, by:

Amendment

‘1. Member States shall ensure that, in addition to the notification obligation provided for in Article 23, notifications can be submitted to the CSIRTs or, where applicable, the competent authorities, on a voluntary basis via the ***reporting channel designated by the competent Member State, including through a national contact point, through a national interface or, where the competent Member State has so decided, through the interoperable European framework*** established pursuant to Article 23a, by:

(a) essential and important entities with regard to incidents, cyber threats and near misses; entities other than those referred to in point (a), regardless of whether they fall within the scope of this Directive, with regard to significant incidents, cyber threats and near misses.'

Or. ro

Amendment 284

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 6 – paragraph 1 – point 3

Directive 2002/58/EC

Article 30 – paragraph 1 – point 1

Text proposed by the Commission

1. Member States shall ensure that, in addition to the notification obligation provided for in Article 23, notifications can be submitted to the CSIRTs *or, where applicable, the competent authorities, on a voluntary basis via the single-entry point established pursuant to Article 23a, by:*

Amendment

1. Member States shall ensure that, in addition to the notification obligation provided for in Article 23, notifications can be submitted to the CSIRTs

Or. en

Amendment 285

Daniel Buda

Proposal for a regulation

Article 7 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 19 a

Text proposed by the Commission

‘1a. Notifications pursuant to paragraph 1, point (b) of this Article to the supervisory body and, where applicable, to other relevant competent authorities, shall be made through the *single-entry point*

Amendment

‘1a. Notifications pursuant to paragraph 1, point (b) of this Article to the supervisory body and, where applicable, to other relevant competent authorities, shall be made through the *reporting channel*

pursuant to Article 23a of Directive (EU) 2022/2555.’;

designated by the relevant competent authority or, where the competent Member State has so decided, through the interoperable European framework provided for in Article 23a of Directive (EU) 2022/2555.’;

Or. ro

Amendment 286
Daniel Buda

Proposal for a regulation
Article 7 – paragraph 1 – point 2
Directive (EU) 2022/2555
Article 24 – paragraph 2 a

Text proposed by the Commission

‘2a. Notifications pursuant to in paragraph 2, point (fb), of this Article to the supervisory body and, where applicable, to other relevant competent bodies, shall be made through the *single-entry point pursuant to* Article 23a of Directive (EU) 2022/2555.’;

Amendment

‘2a. Notifications pursuant to in paragraph 2, point (fb), of this Article to the supervisory body and, where applicable, to other relevant competent bodies, shall be made through the *reporting channel designated by the relevant competent authority or, where the competent Member State has so decided, through the interoperable European framework provided for in* Article 23a of Directive (EU) 2022/2555.’;

Or. ro

Amendment 287
Daniel Buda

Proposal for a regulation
Article 7 – paragraph 1 – point 3
Directive (EU) 2022/2555
Article 45 a – paragraph 3 a

Text proposed by the Commission

‘3a. Notifications pursuant to in paragraph 3 to the Commission and to the

Amendment

‘3a. Notifications pursuant to in paragraph 2, point (fb), of this Article to

competent supervisory body, shall be made through the *single-entry point pursuant to Article 23a of Directive (EU) 2022/2555.*'

the supervisory body and, where applicable, to other relevant competent bodies, shall be made through the *reporting channel designated by the relevant competent authority or, where the competent Member State has so decided, through the interoperable European framework provided for in Article 23a of Directive (EU) 2022/2555*

Or. ro

Amendment 288

Ton Diepeveen, Pascale Piera

Proposal for a regulation

Article 8

Regulation 2022/2554

Article 8

Text proposed by the Commission

Amendment

Article 8

deleted

Amendments to Regulation (EU) 2022/2554

**Article 19 of Regulation (EU) 2022/2554
is amended as follows:**

**1. in paragraph 1, the first subparagraph
is replaced by the following:**

**'Financial entities shall report major
ICT-related incidents to the relevant
competent authority as referred to in
Article 46 via the single-entry point
established pursuant to Article 23a of
Directive (EU) 2022/2555 in accordance
with paragraph 4 of this Article.**

**'Financial entities may, on a voluntary
basis, notify via the single-entry point
established pursuant to Article 23a of
Directive (EU) 2022/2555 significant
cyber threats to the relevant competent
authority when they deem the threat to be
of relevance to the financial system,
service users or clients. The relevant
competent authority may provide such**

information to other relevant authorities referred to in paragraph 6.

Or. en

Justification

DORA has been implemented in 2025. Supervisory competent authorities are not yet operational. It would be too early to amend it now.

Amendment 289

Daniel Buda

Proposal for a regulation

Article 8 – paragraph 1 – point 1

Regulation (EU) 2022/2554

Article 19 – paragraph 1

Text proposed by the Commission

‘Financial entities shall report major ICT-related incidents to the relevant competent authority as referred to in Article 46 via the **single-entry point** established pursuant to Article 23a of Directive (EU) 2022/2555 in accordance with paragraph 4 of this Article.’

Amendment

‘Financial entities shall report major ICT-related incidents to the relevant competent authority as referred to in Article 46 via the **reporting channel designated by the relevant competent authority or, where applicable, through the interoperable European framework** established pursuant to Article 23a of Directive (EU) 2022/2555, **to the extent that such use does not affect the powers of the relevant competent authority**, in accordance with paragraph 4 of this Article.’

Or. ro

Amendment 290

Daniel Buda

Proposal for a regulation

Article 8 – paragraph 1 – point 2

Regulation (EU) 2022/2554

Article 19 – paragraph 2

Text proposed by the Commission

Amendment

‘Financial entities may, on a voluntary basis, notify via the ***single-entry point*** established pursuant to Article 23a of Directive (EU) 2022/2555 significant cyber threats to the relevant competent authority when they deem the threat to be of relevance to the financial system, service users or clients. The relevant competent authority may provide such information to other relevant authorities referred to in paragraph 6.

‘Financial entities may, on a voluntary basis, notify via the ***reporting channel designated by the relevant competent authority or, where applicable, through the interoperable European framework*** established pursuant to Article 23a of Directive (EU) 2022/2555 significant cyber threats to the relevant competent authority when they deem the threat to be of relevance to the financial system, service users or clients. The relevant competent authority may provide such information to other relevant authorities referred to in paragraph 6.

Or. ro

Amendment 291
Daniel Buda

Proposal for a regulation
Article 9 – paragraph 1 – point 1
Directive (EU) 2022/2557
Article 15 – paragraph 1

Text proposed by the Commission

‘Member States shall ensure that critical entities notify via the ***single-entry point*** established pursuant to Article 23a of Directive (EU) 2022/2555 the competent authority, without undue delay, of incidents that significantly disrupt or have the potential to significantly disrupt the provision of essential services.’;

Amendment

‘Member States shall ensure that critical entities notify via the ***reporting channel designated by the competent Member State, including through a national contact point, through a national interface or, where the competent Member State has so decided, through the interoperable European framework*** established pursuant to Article 23a of Directive (EU) 2022/2555 the competent authority, without undue delay, of incidents that significantly disrupt or have the potential to significantly disrupt the provision of essential services.’;

Or. ro

Amendment 292

Daniel Buda

Proposal for a regulation

Article 9 – paragraph 1 – point 2

Directive (EU) 2022/2557

Article 15 – paragraph 2

Text proposed by the Commission

‘The Commission may adopt implementing acts further specifying the type and format of information notified pursuant to Article 15(1). Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 24(2).’

Amendment

The Commission may adopt implementing acts further specifying the type and format of information notified pursuant to Article 15(1), ***after consulting the Member States, the CSIRT network, the competent authorities under this Directive and ENISA, and in accordance with the national reporting channels designated by the Member States.*** Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 24(2).’

Or. ro

Amendment 293

Mario Mantovani

Proposal for a regulation

Article 10 – paragraph 1

Regulation (EU) 2025/837

Article 10

Text proposed by the Commission

1. Regulation 2019/1150/EU is repealed with effect from [date = entry into application of this Regulation].

Amendment

deleted

Or. it

Justification

There are serious misgivings about phasing out the P2B Regulation. It would be premature to conclude that the Digital Services Act and Digital Markets Act could replace the P2B Regulation without sacrificing legal certainty. Although both acts address systemic risks and illegal content, they do not regulate commercial practices or the everyday issues faced by SMEs with e-commerce platforms. Digitalisation only makes life easier for businesses if the

existing regulations are properly enforced. Repealing Regulation 2019/1150/EU would remove essential safeguards, while only alleviating the administrative burden to a minimal degree.

Amendment 294

David Cormand

Proposal for a regulation

Article 10 – paragraph 1

Text proposed by the Commission

Amendment

1. Regulation 2019/1150/EU is repealed with effect from [date = entry into application of this Regulation]. **deleted**

Or. en

Amendment 295

David Cormand

Proposal for a regulation

Article 10 – paragraph 2

Text proposed by the Commission

Amendment

2. By way of derogation from paragraph 1, the following provisions shall continue to apply until 31 December 2032: **deleted**

(a) Article 2, point (1);

(b) Article 2, point (2);

(c) Article 2, point (5);

(d) Article 4;

(e) Article 11;

(f) Article 15.

Or. en

Amendment 296

Daniel Buda

Proposal for a regulation
Article 11 – paragraph 3
Directive (EU) 2022/2557
Article 11

Text proposed by the Commission

Article 3(8), points (a) to (c), Articles 6 (2) and (3) and 7 to 9, shall enter into application 18 months from the entry into force of this Regulation. Deviating from the first sentence, where the Commission finds in its assessment pursuant to Article 23a (7) of Directive (EU) 2022/2555 that the **single-entry point** does not ensure the proper functioning, reliability, integrity or confidentiality, the obligations to report via the **single-entry point** set out in Article 23(4) of Directive (EU) 2022/2555, Article 19a (1a), Article 24 (2a) and Article 45a (3a) of Regulation (EU) 910/2014, Article 33 (1) of Regulation (EU) 2016/679, Article 19 (1) and (2) of Regulation (EU) 2022/2554, and Article 15(1) of Directive (EU) 2022/2557 shall enter into application 24 months from the entry into force of this Regulation.

Amendment

Article 3(8), points (a) to (c), Articles 6 (2) and (3) and 7 to 9, shall enter into application 18 months from the entry into force of this Regulation, ***provided that the competent Member State or relevant competent authority has designated the applicable reporting channel and confirmed that it is interoperable with the European framework provided for in Article 23a of Directive (EU) 2022/2555, where this framework is used.*** Deviating from the first sentence, where the Commission finds in its assessment pursuant to Article 23a (7) of Directive (EU) 2022/2555 that the ***interoperable European framework*** does not ensure the proper functioning, reliability, integrity, ***interoperability*** or confidentiality, the obligations to report via the ***channels*** set out in Article 23(4) of Directive (EU) 2022/2555, Article 19a (1a), Article 24 (2a) and Article 45a (3a) of Regulation (EU) 910/2014, Article 33 (1) of Regulation (EU) 2016/679, Article 19 (1) and (2) of Regulation (EU) 2022/2554, and Article 15(1) of Directive (EU) 2022/2557 shall enter into application 24 months from the entry into force of this Regulation ***or from the date on which interoperability is confirmed by the competent Member State or relevant competent authority, if this date is later.***

Or. ro